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Supreme Court, U.S.
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No. 01-400

In The

Supreme Court of the United States

RICKY BELL, WARDEN,

Petitioner,

v.

GARY BRADFORD CONE,

Respondent.

On Writ Of Certiorari To The United States Court Of Appeals For The Sixth Circuit

JOINT APPENDIX

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Opinion of the United States Court of Appeals for the Sixth Circuit, filed March 22, 2001... Pet. App. 1

Order of the United States Court of Appeals for the Sixth Circuit denying rehearing, filed June 1, 2001..... Pet. App. 112

RELEVANT DOCKET ENTRIES

U.S. District Court
Western District of Tennessee (Memphis)

CIVIL DOCKET FOR CASE #: 97-CV-2312

* * *

2/13/97	4	NOTICE OF FILING DOCUMENTS by defendant Ricky Bell (addenda 1-4 placed in separate folders) (wbe)

* * *

7/1/97	71	PETITION FOR WRIT OF HABEAS CORPUS [placed in separate folder] (ehg) [Entry date 07/02/97]

* * *

8/1/97	74	RESPONSE/ANSWER TO PETITION FOR WRIT OF HABEAS CORPUS by respondent Ricky Bell to [71-1] (placed in separate folder) (ehg) [Entry date 08/05/97]

* * *

10/14/97	97	MOTION by petitioner Gary Bradford Cone for evidentiary hearing (ehg) [Entry date 10/15/97]

* * *

10/14/97	99	REPLY TO RESPONDENT'S ANSWER TO PETITION FOR WRIT OF HABEAS CORPUS . . . by petitioner Gary Bradford Cone re [74-1] [placed in separate folder] (ehg) [Entry date 10/15/97]

* * *

10/29/97	106	RESPONSE by respondent Ricky Bell to motion for evidentiary hearing [97-1] (ehg) [Entry date 10/30/97]

* * *

10/29/97 108 REPLY TO PETITIONER'S RESPONSE TO RESPONDENT'S ANSWER TO PETITION FOR WRIT OF HABEAS CORPUS . . . by respondent Ricky Bell re [99-1] 2-vols. [placed in separate folder] (ehg) [Entry date 10/30/97]

* * *

11/17/97 115 REPLY TO RESPONDENT'S RESPONSE TO MOTION FOR EVIDENTIARY HEARING. . by petitioner Gary Bradford Cone re [106-1] (ehg) [Entry date 11/20/97]

* * *

5/15/98 136 ORDER DENYING MOTION FOR EVIDENTIARY HEARING AND ORDER OF PARTIAL DISMISSAL by Judge Jon P. McCalla. For the reasons set forth in this order, petitioner's motion for an evidentiary hearing [133-1] is denied, and the claims addressed in his motion are dismissed. (cc: all counsel) (gbr) [Entry date 05/18/98]

* * *

1/29/99 170 ORDER OF DISMISSAL ORDER DENYING CERTIFICATE OF APPEALABILITY ORDER CERTIFYING APPEAL NOT TAKEN IN GOOD FAITH ORDER LIFTING STAY OF EXECUTION by Judge Jon P. McCalla . . . all of the claims raised in the Petitioner's petition for a writ of habeas corpus are either barred or meritless, and the Court Dismisses the petition. Additionally, the Court denies a

certificate of appealability, and Certifies that any appeal taken in this matter is not taken in good faith. Finally, the Court Lifts the stay of execution entered in this matter on March 7, 1997, dismissing case, stay lifted (cc: all counsel) (sk) [Entry date 02/01/99]

1/29/99 171 JUDGMENT IN A CIVIL CASE: by Judge Jon P. McCalla re [170-3] . . . It is so Ordered and Adjudged that, in accordance with the Order of Dismissal, entered 01/29/99, this case is Dismissed. (cc: all counsel) (sk) [Entry date 02/01/99]

2/12/99 172 MOTION by petitioner Gary Bradford Cone to alter or amend judgment [171-1] (ehg)

* * *

2/12/99 174 MOTION by petitioner Gary Bradford Cone for certificate of appealability (ehg)

* * *

2/26/99 176 NOTICE OF APPEAL by petitioner Gary Bradford Cone from Dist. Court decision [171-1] (ehg) [Entry date 03/01/99]

* * *

3/26/99 182 IMG ORDER GRANTING IN PART MOTION TO ALTER OR AMEND JUDGMENT by Judge Jon P. McCalla granting motion for certificate of appealability [174-1], granting motion for leave to proceed in forma pauperis on appeal [173-1], granting in part motion to alter or amend judgment [171-1] [172-1] : . . . the Court

Denies pet's request to reconsider its denial of habeas corpus relief. Pet has set no grounds warranting this extraordinary action. After further argument of the parties, however the Court reconsiders its earlier decision denying pet a certificate of appealabilty and Grants pet's request for a certificate of appealability as to his claim that electrocution would subject him to cruel and unusual punishment . . . the Court therefore declines to reconsider its denial of a certificate of appealability as to his other claims for relief. As the Court finds that pet presents an issue of substance upon appeal, the Court withdraws its earlier certification that an appeal in this matter would be frivolous. Accordingly, pursuant to FRAP 24(a)(3), pet may proceed in forma pauperis upon appeal. (cc: all counsel) [CH-Appeals Clerk] (yds)

4/7/99 183 AMENDMENT by petitioner Gary Bradford Cone to notice of appeal [176-1] including the Order Granting in Part Motion to Alter or Amend Judgment entered on 3/26/99. (ssh) [Entry date 04/12/99]

* * *

6/15/99 186 ORDER Entered: 6/10/99 from 6th Circuit re appeal [176-1], granting appellant's motion for a certificate of appealability. (ssh)

* * *

General Docket
US Court of Appeals for the Sixth Circuit
Court of Appeals Docket #: 98-5279

* * *

3/4/99 Death Penalty Case Docketed, with certificate of appealability and ifp denied in district court on 2/1/99. Notice filed by Appellant Gary Bradford Cone. Transcript needed: y (pje)

* * *

6/4/99 Appellant MOTION filed to grant a certificate of appealability, Motion filed by Robert L. Hutton for Appellant Gary Bradford Cone. Certificate of service date 6/3/99 [99-5279] (ac)

* * *

6/10/99 ORDER filed granting motion to grant certificate of appealability [1955155-1] filed by Robert L. Hutton [99-5279]. (pje)

* * *

4/7/00 FINAL BRIEF filed by Tonya G. Miner for Appellee Ricky Bell. Copies: 7. Certificate of service date 4/5/00. Number of Pages: 74. [99-5279] (ds)

4/7/00 FINAL BRIEF filed by Robert L. Hutton for Appellant Gary Bradford Cone. Copies: 7. Certificate of service date 4/5/00 Number of Pages: 117. [99-5279] (ds)

4/7/00 FINAL REPLY BRIEF filed by Robert L. Hutton for Appellant Gary Bradford Cone. Copies: 7 Certificate of service date 4/5/00 Number of Pages: 20. [99-5279] (ds)

* * *

9/12/00 CAUSE ARGUED on 9/12/00 by Paul R. Bottei for Appellant Gary Bradford Cone, Jennifer L. Smith for Appellee Ricky Bell before Judges Merritt, Ryan, Norris. [99-5279] (me)

* * *

3/22/01 OPINION filed: We AFFIRM the district court's refusal to issue a writ of habeas corpus with respect to the petitioner's conviction, but REVERSE the district court's judgment as to the petitioner's sentence. We REMAND to the district court with instructions to issue a writ of habeas corpus vacating the petitioner's death sentence due to the ineffective assistance of counsel at sentencing, unless the state conducts a new penalty phase proceeding within 180 days after remand, decision for publication pursuant to local rule 206 [99-5279]. Gilbert S. Merritt, Circuit Judge, James L. Ryan, Authoring Judge, Alan E. Norris, Circuit Judge. (pje)

3/22/01 JUDGMENT: AFFIRMED: REVERSED and remanded. (pje)

* * *

4/4/01 PETITION for en banc rehearing filed by Jennifer L. Smith for Appellee Ricky Bell. Certificate of service date 4/3/01. [99-5279] (blh)

* * *

5/11/01 RESPONSE to a petition for en banc rehearing [2333627-1] filed by Jennifer L. Smith. Response filed by Robert L. Hutton for Appellant Gary Bradford Cone. Certificate of service date 5/10/01. [99-5279] (blh)

6/1/01 ORDER filed denying petition for en banc rehearing [2333627-1] filed by Jennifer L. Smith [99-5279]. Gilbert S. Merritt, James L. Ryan, Alan E. Norris, Circuit Judges. (blh)

* * *

7/30/01 ORDER filed granting motion to stay mandate until 8/30/01 filed by Jennifer L. Smith [99-5279] Gilbert S. Merritt, Circuit Judge, James L. Ryan, Circuit Judge, Alan E. Norris, Circuit Judge. (pje)

* * *

12/20/01 U.S. Supreme Court letter filed granting petition for writ of certiorari, granting leave to proceed ifp [2422531-1] filed by Gary Bradford Cone [99-5279]. Filed in the Supreme Court on 12-10-01. (swh)

IN THE CRIMINAL COURT OF SHELBY COUNTY
AT MEMPHIS, TENNESSEE

STATE OF TENNESSEE, Appellee,	)	Cases Nos. 74902
	)	74898
	)	74899
v.	)	74900
	)	74702
GARY BRADFORD CONE, also known as "Gerald Mason Harmon",	)	74703
	)	
	)	
Appellant.	)	

TRANSCRIPT OF THE EVIDENCE

State's Proof April 20, 1982

(Filed Jan. 28, 1983)

BEFORE: THE HONORABLE JAMES C. BEASLEY, PRESIDING JUDGE

* * *

[1631] VALEREE H. CONE, called as a witness by the Defendant, after first having been duly sworn was examined and testified as follows:

DIRECT EXAMINATION

BY MR. DICE:

* * *

[1643] Q. I'd ask you once again, if I might, Mrs. Cone, did your son, Gary, go to Vietnam?

A. He did.

Q. All right. And he was over there a year. Is that correct?

A. That's right.

Q. All right. Now, –

A. A little bit better.

Q. All right. I'd ask you, please, ma'am, if when he came back, what changes that you noticed about him?

A. Well, he never kept appointments with his friends, and he seemed to be very uptight most of the time, and in a very big hurry to get everything done that he even went at.

Q. All right. Did he suffer from nightmares?

A. He definitely –

MR. STROTHER: I'm going to object to leading.

Your Honor.

[1644] Q. Let me ask you this. What else did he suffer from?

A. From acting like, at times, he was in another world.

Q. All right. And I'd ask you, please, ma'am, if he talked to you at all –

MR. STROTHER: I'm going to object to leading. Your Honor.

THE COURT: Well, let me hear the question. Go ahead.

MR. DICE: May I be permitted – Well, all right.

Q. When you say he acted in another world, how did he sleep at night?

A. Very badly.

Q. What do you mean by "very badly", Mrs. Cone?

A. Restless and sometimes hollering.

Q. Okay. And, specifically, did he ever holler or talk to you about body bags, or experiences –

A. He definitely did.

Q. All right. What was that related to?

A. About them flying the bodies back and him having to help handle them and how terrible it was, and the condition the bodies were in at the time.

Q. All right. And what about him, was he outgoing when he came back?

A. No, he wasn't.

Q. Okay. How was he?

A. Well, as I say, he didn't keep appointments a lot [1645] of times, and that wasn't Gary, you know. He was always punctual before then. For instance, him and his first cousin and one of his first friends – which was

another girl – which lived just a little piece from me – was supposed to go to a picture show, and he sure didn't show for the – He went off with another friend and was supposed to be back in a little while, and he did not show.

Q. All right. May I ask you this, Mrs. Cone. What about his general demeanor? Did he laugh? Did he cry? Did he – What did he do?

A. No, no, he did not laugh, but he did not cry either. He acted like, you know – He was just stoning it, you know. I know what – I know you don't understand exactly what "stoning" means, but, you know, just holding it in.

Q. Okay. Prior to the time when he went to Vietnam, was your son – How did he perform in school?

A. Very good. Very good.

* * *

[1657] MATTHEW JAREMKO, Ph.D., called as a witness by the Defendant, after first having been duly sworn was examined and testified as follows:

* * *

[1670] DIRECT EXAMINATION

BY MR. DICE:

Q. All right. Dr. Jaremko, I would ask you if you have performed a patient history on your patient, and my client, Gary Cone?

A. Yes.

Q. All right. And so that I might ask you this, have you made a diagnosis of Mr. Cone in your examination of him?

A. Yes.

Q. All right. And specifically, would you tell the jury whether or not he is suffering from any diseases which affect the mind?

A. Yes.

Q. And what are those diseases, and what are the basis for your findings?

A. It is my opinion that Mr. Cone has a combination of two disorders: One is a substance abuse disorder, but that is superimposed upon a post-traumatic stress disorder. The substance abuse disorder – I'll get to in a minute, but I believe that the post-traumatic stress disorder is the major cause for why he got involved in drugs. This post-traumatic stress disorder is a result of him being exposed to the trauma of combat and the continuing trauma that occurred after he came back as a Vietnam Veteran from an unpopular war, in which he became disenfranchised from the [1671] society at large, causing him a great deal of personal stress, social maladjustment.

The four features of a post-traumatic stress disorder that Mr. Cone has manifested over the years has been, of course, the exposure to the trauma of combat; but, secondly, the reliving of the combat trauma. Mr. Cone manifests for some time, nightmares that are related to Vietnam – his being in Vietnam. He manifests what are called "flashbacks", that is, thinking about – perceiving

himself being back in combat situation. The third category of this disorder is an emotional distance and a social distance from society at large, in which has a large change in his value system – what he perceives as being important. After suffering from the exposure to the combat trauma he apparently has changed from perceiving things like work and success and discipline as being important dimensions in his life to other kinds of values. He considers now things like kindness, pleasure, justice, truth, to be more important than acievement [sic]-oriented values. In other words, he's distant from – he's at odds with the traditional values that most of us are socialized by, because of his exposure to the Vietnam combat situation.

Then the fourth category of this disorder is stress related symptoms, whether they be depression, nervousness, sleep disorders – he has manifested all of these problems.

[1672] Now, I believe that he then started to use drugs sometime during his tenure in Vietnam, and has continued to use drugs as a self-way to self-medicate against the stress that he feels from having been a victim of the combat trauma. So, in summary, it's my opinion that he has a combination of a substance abuse disorder that is a result of self-medication from the stress related disorder he incurred when he was in Vietnam.

Q. Why do you say that the substance abuse disorder is an outgrowth of his service in Vietnam, Dr. Jaremko?

A. There is no evidence from my interview, or other's interviews of Mr. Cone, that he used drugs before he went to Vietnam.

* * *

[1674] Q. Do you have an opinion as a clinical psychologist as to whether or not your patient, and my client, was suffering from a mental illness in August of 1980?

A. Yes, I do.

Q. And what is your opinion in that regard?

A. Yes, he was. My opinion is that he was.

Q. All right. And would that illness that he was suffering from render him substantially incapable of conforming his conduct to the requirements of the law?

[1675] A. I believe it would.

Q. All right. And I would ask you whether or not that illness is such to prevent his knowing the wrongfulness of his conduct?

A. I can't say about that.

Q. All right. I would ask you, Dr. Jaremko, whether or not Mr. Cone has expressed to you any remorse for his involvement in the killings of a couple known as Cleopatra and Shipley Todd?

A. Yes, he has. He's said that he was very sorry that that happened.

Q. All right. Now, is it your statement as a clinical psycholgist, based on a reasonable degree of either psychological certainty or psychiatric certainty, that he is suffering from a mental disease or defect?

A. It is my opinion, yes.

* * *

Defense Proof April 21, 1982

[1715] JONATHAN J. LIPMAN, Ph.D., called as a witness by the Defendant, after first having been duly sworn was examined and testified as follows:

VOIR DIRE EXAMINATION

BY MR. DICE:

Q. If you will, please, sir, will you state your name.

A. Jonathan Joseph Lipman.

Q. And Dr. Lipman, can you tell me where you live?

A. Here in Memphis, Tennessee.

Q. And I'd ask you whether or not you have a professional title, such as lawyer, doctor, what-have-you.

A. I'm a neuropharmacologist, sir.

* * *

[1722] DIRECT EXAMINATION

BY MR. DICE:

Q. Dr. Lipman, I would ask you whether or not you know the young man to my left, and to whom I am pointing?

A. Yes, sir.

Q. And is his name Gary Cone?

A. Yes, sir.

Q. Have you and I consulted together, and have you consulted with him?

A. Yes.

Q. All right. Is he your patient?

A. Yes.

Q. All right. Do you know Dr. Matthew Jaremko?

A. Yes, I do.

Q. And is fair of me to say that you and I and he have discussed the case of Gary Cone together?

A. Yes, sir.

Q. All right. I would ask you, Dr. Lipman, whether or not you have done an examination and a patient history on Gary Cone?

A. Yes, sir.

Q. Where were your interviews conducted, Dr. Lipman?

A. Here in this Justice Complex.

Q. All right. And, if you will, sir, did you bring a report with you of your studies and conclusions as regards [1723] to your patient, Mr. Cone?

A. Yes, I did, sir.

Q. All right, sir. I would ask you, if you will, Dr. Lipman, to explain to the ladies and gentlemen of the jury when you first interviewed Mr. Cone, and what you studied, and exactly what was done in that particular proceeding.

A. When I first interviewed Mr. Cone?

Q. Yes.

A. In February of this year, I interviewed Mr. Cone, here in the Justice Complex, with the intention of obtaining a drug history from him in the context of his life. This was a three hour interview, I believe, during which I formulated a pattern – a very brief and rough pattern – of the way that he had been using drugs since the age of eighteen through to the present time.

I analyzed his drug pattern and made some assumptions and some conclusions with regard to the way that he had been using drugs, and the way that he'd been behaving.

Q. What was that drug pattern?

A. As first determined, in that initial interview, he was what we call a polydrug user, he used more than one drug. His principal drug was amphetamine, in many of its different forms, including cocaine, which is amphetamine-like as regards its action on the brain. And this use

was combined [1724] with the coincident use of morphine-type drugs – opiates, we call them – which he would use interspersed with the amphetamine-type doses to reduce the anxiety producing effects of the amphetamine-type drugs.

Q. When you say "amphetamine", do you know a street term in your studies for amphetamines?

A. The commonest word is "speed".

Q. Okay, And I'd ask you, Dr. Lipman, when did your patient and your drug history tell you that this drug usage began, and what was the nature of it at that time?

A. His drug history seemed to be absent up to the age of eighteen. In 1966 was his first exposure to drugs. He was introduced to Hashish, which is *cannabis resin*, in the Army in Germany, where he was stationed, and later in the Army, also, whilst in Vietnam. He was there introduced to Opium, which contains morphine, and to amphetamine. He was apparently issued this amphetamine for 53 consecutive nights whilst on guard duty to maintain alertness. And this was his first exposure, which was of the opiate-type and amphetamine-type. And this pattern continued throughout the remainder of his history, as I took it.

* * *

[1758] Q. In August of 1980, in your opinion, was your patient suffering from a disease called chronic amphetamine psychosis?

A. Yes, based on the drug dosage that he was taking.

Q. All right.

A. And the symptoms thereof.

Q. Would chronic amphetamine psychosis be such as to prevent his knowing the wrongfulness of an act?

A. Yes.

Q. Would it be such as to render him substantially incapable of conforming his conduct to the requirements of law that he's charged of violating in this case?.

A. Uh-huh, yes.

Q. Would it be such that he would be suffering, in fact, from a mental illness – albeit drug-induced – at the time of the commission of the crime?

A. It is a mental illness, yes.

Final Argument
April 22, 1982

* * *

[2033] MR. DICE: We made an opening statement. We made an opening statement, and in that I told you that I would show you that my client, Gary Cone, was an Army brat, and by that I meant that he came from an Army family. That he was graduated from a school in Lake Village, Arkansas. And something that we talked about in that opening statement when we talked to you is that we would show by uncontroverted proof that Gary Cone was a normal individual, a stellar scholar, a member of a family unit before he went off to a [2034] faraway

place called Vietnam. And if you remember, I talked to so many of you about do names like Cameron Bay and Danang and Bien Hoa mean anything to you in asking you about your experiences in Vietnam. Have you ever heard of the Vietnam Veterans Center? And almost every one of you, but for one or two, said, no, we've never heard of that. Have you ever heard of the Vietnam Stress Syndrome, or Post-traumatic Stress Syndrome? And almost all of you said, no, we've never heard of that.

And I asked you, have you heard of a place called the Gulf of Tonkin. And I think there was only [sic] member of this jury who had.

But I told you that something had caused a change. And I told you that we would deal with two Gary Cones. One, I submit, is this Gary Cone [demonstrating photo] pictured as he was many years ago. And one that I submit is this Gary Cone [demonstrating photo] pictured as he was in August of 1980. What caused him to be here, as one person, portrayed as a deliberate and cool and premeditated killer by the State, and what caused him to change from this?

* * *

April 23, 1982

PUNISHMENT AND SENTENCING HEARING

[2112] THE COURT: All right. Does the State care to make an opening statement?

MR. STROTHER: Very, very brief one, Your Honor.

THE COURT: You may proceed.

MR. STROTHER: Ladies and gentlemen, we are, as I'm sure you're aware from the opening voir dire,

at the stage in this proceeding where it will be your duty and responsibility to fix the punishment in this case. The State, in its original voir dire – that seems virtually an eternity ago, –

REPORTER: Judge, I'm not hearing Mr. Strother.

THE COURT: She's not hearing you, General.

MR. STROTHER: I'll try to move down to another microphone where hopefully she can pick me up.

We went over with you the law which is applicable, and I don't want to take much of your time now; simply to remind each and every one of you that you promised both us, and frankly, the Defendant, that you'd base your verdict on the law and the evidence, and on those two things alone. And I submit to you that law, the law His Honor's going to charge you is that: (reading)

> "– If the jury unanimously determines that at least one statutory aggravating circumstance [2113] or several statutory aggravating circumstances have been proved by the state beyond a reasonable doubt, and said circumstance or circumstances are not outweighed by any mitigating circumstance, the sentence shall be death. –"

And I submit to you that His Honor is going to charge you that you may consider – of course, the proof that you've heard already in this case, you may consider it both for aggravating and for mitigating circumstances. And that you are also to consider the proof which now will be presented to you. I know the State is going to present some, and it will be up to the Defendant, if they choose, to put on any. And all I call upon you to do is to

go back and follow that law. And I submit to you – and I can't say what the Defense will prove at this point, or what might come in as far as the Defendant's is concerned. But I submit to you that the State will prove four aggravating circumstances, either at this stage or we have previously proven them.

First, we'll prove that: (reading)

"– The defendant was previously convicted of one or more felonies, other than the present charge, which involve the use or threat of violence to the person. –"

We will prove to you that he was convicted not of one but of three robberies committed with a deadly weapon in the [2114] state of Oklahoma.

We will further prove to you that:

"– The defendant knowingly created a great risk of death to two or more persons, other than the victim murdered, during his act of murder. –"

And to be honest with you, we're not going to put on any more proof to that effect. But you've heard the facts, you've heard the circumstances. Obviously, in Mrs. Todd's case, there was a great threat of death to Mr. Todd. But during this sequence, during this time frame, during this act of murder, wasn't Mrs. Tuech put in that same position? Wasn't there a real likelihood of her death if she hadn't gotten that door closed? It's up to you. I don't make that decision. You do.

I further submit to you that we will prove:

"– The murder was especially heinous, atrocious, or cruel in that it involved torture or depravity of mind. –"

And further, we will prove:

"– The murder was committed for the purpose of avoiding a lawful arrest. –"

It was part of this man's attempt to escape the police network which was engulfing that area of the town at this time.

Thank you.

THE COURT: Mr. Dice.

[2115] MR. DICE: May it please the Court, and ladies and gentlemen of the jury: We talked about on the opening statement before about what the procedure in this courtroom would be if we got to this stage in the trial. I think all of us are fairly well familiar with that.

So, just as a brief refresher on that, as General Strother says, in this stage – the State is entitled to opening and the Defense is. Proof can be put on by either side as to aggravating and mitigating circumstances, and then after that is done the State has the right of making a closing argument, and so does the Defense.

What we're going to do in this particular phase of the case, as I've said to you all in the beginning of this trial, is that we will deal in death, or, we will deal in life. That is

exactly where we are, and certain circumstances are going to be pointed out to you.

I agree with the General that the proof – I believe His Honor will tell you that was presented in the main portion of this case can be considered by you in considering both aggravating and mitigating circumstances. I'd also would make these comments in regards to that.

The Defense read to you what mitigating circumstances were present. The Defense has put on proof of those mitigating circumstances during its case, and I would like to review those with you.

[2116] We say that the mitigating circumstances which will apply in this particular case are as follows.

We say that the murder involved in this particular case was committed while the Defendant was under the influence of extreme mental or emotional disturbance.

We say that because Dr. Jaremko testified that in his opinion – and I realize there's been conflicting testimony – that he was suffering from a psychosis that continues until present. In his case, Vietnam Veteran's Stress Syndrome. From the standpoint of Dr. Lipman, of what he called Amphetamine Psychosis. Dr. Bursten, of course, had his opinion. Dr. Hutson had his opinion.

We also say that the mitigating circumstance of the Defendant acting under the extreme duress in this particular case can be considered by you, as follows.

That the Court will charge to you that one of the mitigating circumstances which can be considered by you in a case of this nature is whether:

> "– The capacity of the defendant to appreciate the wrongfulness of his conduct or to conform his conduct to the requirements of the law was substantially impaired as a result of mental disease or defect or intoxication which was insufficient to establish a defense to the crime but which substantially affected his judgment. –

[2117] And in going back at that, there's been a lot of issues brought up before all of you in terms of whether or not my client is the junkie and drug addict that we say he is.

And the General said that he'll prove that my client was incarcerated for three robberies in Oklahoma, and I guess he'll present some further proof on that. I don't know. But if you remember, in considering this mitigating circumstance and remembering the proof, when he was arrested in Pompano Beach, according to Agent Flynn, he was arrested robbing a drug store, seeking drugs, and according to Officer Roby, looking for syringes. And I suggest that you consider whether or not that action is the action of an addict looking for his source of supply.

And I again ask you to consider that particular mitigating circumstance in looking at this – weighing and balancing of the mitigating circumstances.

I suggest to you that Dr. Jaremko stated, in his interview with my client, my client has expressed remorse for his conduct. That is not a statutory mitigating circumstance, but it is a circumstance that you can consider, as the General says, under the rule.

And I asked all of you, each and every one of you, to look at the whole man in this case, when we began. And I

suggest to you that proof has been put in this record [2118] that he is an honorably discharged veteran of his country, and I ask you to look at that in light that there is no evidence of any kind, of any nature, in this record, other than the fact that his drug abuse began under the stress and strain of combat service. And I suggest to you that that is a mitigating circumstance.

Yesterday, during the heat of battle, General Strother referred to my client as an animal. Now, we're in the position here on opening statement of talking about the alternatives that are available. I suggest to all of you that we are not animals in this jury box, and I suggest to you that animals do not kill if there is an alternative. And there is good reason for maintaining life if you look at the whole man in this particular case.

The position that we're in, perhaps again, our ethics have been questioned, the Defense team. If we're unethical to seek mercy, then I am unethical. But mercy is – it's a double blessing. It's a blessing to the person who gives, and it's a blessing to the person who receives. And I would say to you that mercy – if you consider life under the mitigating circumstances, and the aggravating circumstances in this case – raises you above the State, raises you above the King, if you will. It raises you to the level of God.

And I ask you to consider all of those facts as [2119] you decide whether or not you will kill Gary Cone. Now, under the proof, perhaps, the theory of the State will be that Gary Cone has put himself in this position. But I submit to you there are victims in this case called the

Todds, a fine elderly couple. There is also a victim in this case, of society, named Gary Cone. Thank you.

THE COURT: You may call the first witness.

MR. PATTERSON: James A. Blackwell, please.

STATE'S PROOF

J. A. BLACKWELL, called as a witness by the State, and after first having been duly sworn was examined and testified as follows:

DIRECT EXAMINATION

BY MR. PATTERSON:

Q. State your name for the Court and jury, and spell your last name for the record, please.

A. J. A. Blackwell. B-L-A-C-K-W-E-L-L.

Q. And by whom are you employed?

A. Shelby County Government.

Q. And in what capacity?

A. As Criminal Court Clerk.

Q. As part of your duties as the Criminal Court Clerk, [2120] are you custodian of the records of the Courts of Shelby County?

A. That is correct.

Q. And I'll ask you, pursuant to the State's request, did you bring certain records concerning a Gary Bradford Cone to Court with you?

A. I did so bring.

Q. And do you have them with you?

A. I do.

Q. I'll ask you, among your records, do you have a conviction of Gary Bradford Cone, also known as Gerald Mason Harmon?

A. I do so have.

Q. Referring to your records, under CRF 72-1431, do you have a conviction of a Gary Bradford Cone for robbery with a firearm?

A. (Referring to records) I do have.

Q. And under what date was this conviction?

A. It would be of the date August 9, 1972.

Q. And what was the sentence?

A. The sentence, 25 years.

Q. And referring to CRF 72-1476, –

A. (Referring to record) I do have that record.

Q. – do you have a conviction of a one Gary Bradford Cone?

A. I do have.

[2121] Q. And what is the conviction, and the date of the conviction?

A. The date, August 9, 1972. 25 years.

Q. And for what offense?

A. For the offense of robbery with firearms.

Q. And would you refer to your records as far as CRF 72-1477.

A. (Referring to record) I have that record.

Q. And does it show a conviction on one Gary Bradford Cone?

A. It does.

Q. And for what was he convicted, and the date?

A. For robbery with firearms, on the date of August 9, 1972.

Q. And what was his sentence?

A. The sentence was for a period of 25 years.

MR. PATTERSON: May it please the Court, I would like to make as State Exhibit No. 71 the record of one Gary Bradford Cone, being made part of the record.

THE COURT: What number would it be, Laurel?

REPORTER: 71.

THE COURT: 71.

MR. DICE: I'd like to see the exhibit, if I might.

THE COURT: Certainly, Mr. Dice.

MR. PATTERSON: If you would remove the exhibit from [2122] the papers, I believe there are other papers there.

(Witness tendered documents to Defense for examination. Documents then returned to witness by Defense.)

MR. PATTERSON: Excuse me, I have requested that be made State Exhibit No. 71.

MR. DICE: No objection.

THE COURT: May be received in evidence and marked Exhibit 71 to the record.

(State's Exhibit No. 71 marked and filed)

BY MR. PATTERSON: (Continuing)

Q. Mr. Blackwell – Excuse me, if you would leave that out. Mr. Blackwell, is that we call – Is that a certified copy of a record from another state?

A. Yes, this is a certified copy of the record, as certified by the Clerk of the Court from Oklahoma County, Oklahoma, I believe is the – the Court Clerk for Oklahoma County, Oklahoma. That is correct.

MR. PATTERSON: I pass the witness.

(end of page)

[2123] CROSS-EXAMINATION

BY MR. DICE:

Q. Mr. Blackwell, how long have you been the Shelby County Criminal Court Clerk, please, sir?

A. 1982 is my 30th year.

Q. 1982?

A. Yes, sir, this started my 30th year.

Q. And when you're certifying to a Court record, so these ladies and gentlemen of the jury understand it, you

are certifying to it that the records are accurate for the material contained therein, are you not?

A. That is what is furnished here, that is correct.

Q. And as part of that record, does it not say as to Gary Cone that he served in Germany and Vietnam, where he was awarded the Bronze Star?

(Pause – Witness examining records)

MR. DICE: May I approach the witness, Your Honor?

THE COURT: Yes. Sure.

(Pause)

A. I believe this is it here. Yes. Yes, it's part of the Classification Summary. It shows on a Gary Cone, and the Docket No. 84931-1, showing the military service: (reading)

> "– Gary Cone entered the U.S. Army in November, 1966, at Little Rock, Arkansas. He served in Germany and Vietnam, where he was awarded the [2124] Bronze Star. He was a supply sergeant, and reached the rank of E-5. He was honorably discharged in July, 1969. –"

Q. All right. Mr. Blackwell, all three of the convictions that you have testified to occurred on the same date. Is that correct?

A. The convictions were on the same date. That's correct.

MR. DICE: Nothing further.

THE COURT: Anything further of Mr. Blackwell?

MR. PATTERSON: Yes.

REDIRECT EXAMINATION

BY MR. PATTERSON:

Q. Mr. Blackwell, you refer to those records. Are the indictments – the Oklahoma indictments contained in the file?

A. They are.

Q. If you would, locate them and give – First, if you'll just locate the first indictment.

A. (Witness complies).

Q. What is the date of the offense on the first indictment?

A. The date of the offense on the first indictment: On or about the 28th day of December, 1971.

Q. And if you'll refer to the next indictment.

[2124] A. (Witness complies). The second indictment, or information, is: On or about the 7th day of March, 1972.

Q. And the third indictment.

A. (Witness complies). On or about the 22nd day of May, 1972.

MR. PATTERSON: Thank you. We pass the witness, again.

MR. DICE: I have nothing further. Thank you, Mr. Blackwell.

THE COURT: Thank you, Mr. Blackwell.

THE WITNESS: Yes.

MR. PATTERSON: I believe you'll need to leave the exhibit here, Mr. Blackwell.

THE WITNESS: Yes.

(Exhibit tendered to State)

MR. PATTERSON: Thank you.

*** (WITNESS EXCUSED) ***

THE COURT: Next witness.

MR. PATTERSON: Mr. Holder, please.

(end of page)

[2125] JAMES L. HOLDER, recalled as a witness by the State, after first having been duly sworn was examined and testified as follows:

DIRECT EXAMINATION

BY MR. PATTERSON:

Q. I think the jury has seen you before, but state your name, please.

A. James L. Holder. H-O-L-D-E-R.

Q. By whom are you employed?

A. The Memphis Police Department.

Q. And what is your job with the police department?

MR. DICE: I'll stipulate to his credentials again, if the Court please.

THE COURT: You might just –

Q. What is your job, what do you do?

A. I'm a latent fingerprint examiner.

Q. You can classify and identify fingerprints – latent fingerprints?

A. Yes, sir.

Q. And also known fingerprints. Is that correct?

A. Right.

Q. I'd like to hand you what's been heretofore introduced as State Exhibit No. 65, and also, if you will, give him State Exhibit No. 71. (Pause) What is [2126] State Exhibit No. 65? I believe it's been introduced as the known prints of a individual, of Gary Bradford Cone, also known as Gerald Mason Harmon. What is that exhibit?

A. This is a set of inked finger impressions – original finger impressions, and inked palm impressions. It's several cards. Also inked foot impressions.

Q. Fine. Now, if you'll refer to State Exhibit No. 71, I'll ask you, are there any inked impressions contained within that exhibit?

A. There is a copy – I would assume it's a xerox copy, it appears to me to be a copy – of a set of rolled inked impressions, finger impressions.

Q. Is there a person's name on those impressions?

A. Yes, sir. (reading) "Gary B. Cone".

Q. Would you, Officer Holder, compare the prints on State Exhibit No. 65 with the prints of State Exhibit No. 71, then I'll ask you whether or not, are these the same prints of the same individual.

A. All right. [Witness complies, using magnifying glass] Yes, sir, these impressions are the same. I compared No. 6 fingers on each set, which would be the left thumbs, and I found them to be the same.

Q. Is your opinion, then, that the inked impressions on State Exhibit No. 65 and the inked impressions on State Exhibit No. 71 are of the same individual?

[2127] A. Yes, sir, that's correct.

MR. PATTERSON: Pass the witness.

MR. DICE: We have no questions.

THE COURT: Thank you, Mr. Holder.

*** (WITNESS EXCUSED) ***

THE COURT: Next witness.

MR. STROTHER: Officer Mike Stovall.

(end of page)

[2128] C. M. STOVALL, recalled as a witness by the State, after first having been duly sworn was examined and testified as follows:

DIRECT EXAMINATION

BY MR. STROTHER:

Q. State your name, please, and spell your last name for the record.

A. Officer C. M. Stovall. S-T-O-V-A-L-L.

Q. It may seem like a long time ago, but you're the same Officer Stovall who testified about a week ago in this same case. Correct?

A. Yes, sir.

Q. And you were employed by the Memphis Police Department on August 9, 1980. Is that correct?

A. Yes, sir.

Q. On August 9, 1980, out there on Hawthorne and the streets in midtown, were you attempting to make an arrest?

A. Yes, sir.

Q. Who were you attempting to arrest?

A. Gary Bradford Cone.

Q. And for what were you attempting to arrest him?

A. Armed robbery.

Q. After that, and subsequent – Did you, in fact [2129] make that arrest, or were you able to make that arrest at that time?

A. No, sir.

Q. After that time, were officers of the Memphis Police Department continuously, until his apprehension, –

MR. DICE: May we approach the bench? I object.

THE COURT: Yes, sir.

(Whereupon, a bench conference was held on the record in the presence of the jury but out of the hearing of the jury, and the following proceedings were had:)

MR. DICE: I object to the relevancy of it, and I object, if Your Honor please, to the leading. I don't understand where we're going here.

THE COURT: I think I understand where he's going, but I'll sustain the objection to leading.

(Said bench conference having been completed, the following proceedings were had in the presence and hearing of the jury:)

BY MR. STROTHER: (Continuing)

Q. After you were unable to make an arrest at that time, did you, or to your knowledge anyone else, make any [2130] further attempts as far as an arrest is concerned?

A. Yes, sir. It was – I don't know how many police officers, it looked like the whole force was out there trying to arrest him.

Q. And do you know how long that continued or how long there was an attempt made?

A. It lasted all through the night.

Q. And what about the following day?.

A. The next morning, we got another tip that he was trying to enter another lady's house –

MR. DICE: If Your Honor please, I object. I object to hearsay.

THE COURT: Well, yes, I'll sustain the objection.

You can't consider that for the purpose of proving or establishing evidence that he did, in fact, attempt to enter anyone's house. Do you understand? That's hearsay. And I'll sustain the objection. You couldn't consider it.

Q. If I might, I'm just trying to ask you if you, personally, and other officers, within your own personal knowledge, – Do you understand what I'm saying?

A. Yes, sir.

Q. – attempted to make an apprehension?

A. Yes, sir.

Q. And did that continue?

[2131] A. Continued the next day, also.

Q. And did it continue until the apprehension of the Defendant in the state of Florida?

A. Yes, sir.

MR. STROTHER: That's all I have, Your Honor.

MR. DICE: Statements, if any?

MR. STROTHER: You've already been furnished with all the ones I have, Mr. Dice.

MR. DICE: Okay. Nothing further.

THE COURT: Thank you, Mr. Stovall.

*** (WITNESS EXCUSED) ***

MR. STROTHER: Officer Bert Allen.

(end of page)

[2132] C. B. "Bert" ALLEN, recalled as a witness by the State, after first having been duly sworn was examined and testified as follows:

DIRECT EXAMINATION

BY MR. STROTHER:

Q. State your name, please.

A. Bert Allen.

Q. By whom are you employed?

A. Memphis Police Department.

Q. Were you so employed on August 9, 1980?

A. Yes, I was.

Q. Did you on that date have an occasion to attempt to make an arrest?

A. Yes, sir, I did.

Q. Who were you attempting to arrest?

A. I was attempting to arrest this male white, Gary Bradford Cone.

Q. Were you successful in making that arrest?

A. No, sir, I was not.

Q. For what charge were you going to arrest him?

A. I was going to arrest him for robbery, armed robbery.

MR. STROTHER: Pass the witness, Your Honor.

MR. DICE: I have no questions of Officer Allen.

THE COURT: Thank you, Mr. Allen.

[2133] *** (WITNESS EXCUSED) ***

MR. STROTHER Officer Jimmy Hammers.

JIMMY HAMMERS, recalled as a witness by the State, after first having been duly sworn was examined and testified as follows:

DIRECT EXAMINATION

BY MR. STROTHER:

Q. State your name, please.

A. Jimmy Hammers.

Q. And I think, obviously, you are the same officer who testified earlier in this case that on August 13, 1980, you were one of the first officers to enter the house of Mr. and Mrs. Todd. Is that correct?

A. That's correct, sir.

Q. And at that time you observed the conditions within that house, did you not, Officer?

A. Yes, sir, I did.

Q. And you did observe the condition, location and positioning of the bodies in that house and what had occurred to them, did you not, Officer?

A. Yes, sir.

Q. I'd like –

[2134] (Pause – Group of photos tendered to Defense)

MR. DICE: May we approach the bench, and, more specifically, may we have the jury out, Your Honor?

THE COURT: Go to your room, ladies and gentlemen. Don't discuss the case. We'll get you back in – Well, we may get you back in or we may send you to lunch, I don't know, but one or the other, shortly. Don't discuss the case.

(Whereupon, the Court excused the jury from the courtroom, after which the following proceedings were had out of its presence:)

MR. DICE: If the Court please, I would like the Sheriff to assist me in passing – I'd like those passed to the bench, please, sir.

BAILIFF: Oh, I'm sorry, I didn't understand you.

(Group of photos tendered to Court)

MR. DICE: I think Your Honor has already ruled on those particular photographs, and that is what is attempting to be passed to the witness, and I would strenuously object, if the Court please.

THE COURT: Well, let's let him pass them out of the presence of the jury and see what he wants to do with them.

MR. DICE: Yes, sir.

[2135] BY MR. STROTHER: (Continuing)

Q. Officer Hammers, –

THE COURT: Those are the pictures that I have excluded during the trial, –

MR. DICE: Absolutely.

THE COURT: – for the record. All right.

MR. STROTHER: Your Honor, for the record, those are not the photographs which you excluded on a prior occasion, because I think those photographs are still with the clerk and still a part of the record in this case.

These are additional photographs which I had contained in a group of photographs of the scene, but they are – and my only question –

THE COURT: If they are not, they are just about identical to them.

MR. STROTHER: Well, if I –

THE COURT: They may not be, but they certainly appear to be, you know, – I'm not – They're close shots.

MR. STROTHER: I think that in all probability they are almost identical to those, yes. But they are not –

THE COURT: Well, okay. I'll withdraw – I should have kept my mouth shut, and let you-all prove your record but – We'll just let you go right ahead.

BY MR. STROTHER:(continuing)

Q. Do those photographs truly and accurately portray

[2136] The conditions of the bodies as you found them, of the Todds, on August 13, 1980?

A. (After examining photos) Yes, sir, they do.

Q. And do they show, what in your opinion might be the results of a heinous, atrocious, cruel murder that would evidence depravity of mind?

A. Yes, sir, I'd say they do.

MR. STROTHER: That's all, Your Honor.

MR. DICE: I'm going to renew my objection, if Your Honor please. There's nothing about those bodies – and we go back to this. The bodies lay in an un-air conditioned home, if the Court please, for some four days. They became bloated, according to the testimony of the doctor, because of those conditions, et cetera. They're not representative of the conditions of the bodies immediately after blows were applied.

I again come back to the prejudicial effect, and that the Attorney General is deliberately trying to incite the passion and caprice of the jury. And if he wants to ask him whether or not he thinks this was a heinous crime, et cetera, I think the jury can figure that out under Your Honor's instructions to them. But there's only one purpose for those pictures, if the Court please, and that's to incite this jury. I think we all know that.

THE COURT: Well, I don't have it out here, but [2137] there's a case just recently came back on this very proposition. The Supreme Court reversed it, on another sentencing hearing, on this heinous crimes, and so forth, and it's got to be might close. Are you all familiar with the case? Just the last week. It came back –

MR. PATTERSON: No.

MS. STROTHER: Your Honor, I've been down here preparing this case for the last two weeks –

THE COURT: Well, I say last week, it's been a short period of time that I saw it, and it's the very proposition that – While there were other legitimate, the supreme Court said, aggravating factors, they said we are not going to allow a death penalty to stand when there's a questionable aggravating factor, or one that they didn't feel would support it. And they didn't feel that that heinous proof beared it up to the United States Supreme Court decisions on it.

Now, I'm not going to get into that now. I may have to get into it at the appropriate time, but –

MR. DICE: Well, I'm just saying that's a question for the jury to determine, –

THE COURT: I understand, –

MR. DICE: – not for him to determine.

THE COURT: – I understand, and I'm – I don't even know where we're going yet. I'm going to get into that [2138] as to what specific aggravating circumstances we're talking about, as going to the jury.

But – I see nothing, for the record, in ruling upon your objection to these pictures being passed to the jury, I see nothing which tends to establish the – And maybe the General can show me where it does, as to establish that this is a heinous crime – And don't misunderstand me. I think that as a human being and as a – I have one idea about what's heinous, and another when I'm sitting as

judge of this Court, and the classification that's intended by the multiple decisions of the appellate Courts of this country, including the Untied States Supreme Court and the Supreme Court of the State of Tennessee, as to what is a heinous crime.

Quite frankly, the Court feels that these pictures show a very distasteful, very pathetic condition of two bodies. But other than the fact that they are covered with blood, I don't see anything that proves a heinous of the crime, General, I really don't. I think that your probative value is grossly outweighed by these photographs.

Now, I'll be glad to hear what you're saying beyond that, but that's the way I view it.

MR. STROTHER: Well, Your Honor, my position is – Well, I'll be happy to say what I'm saying, and I'll certainly abide by Your Honor's ruling. But my position. [2139] very simply, is this: That, yes, you can do something to a jury when you pass gory photographs to them during the guilt or innocence phase of a trial, and the concept that I've always gotten from those cases is that you are influencing their decision on the issue of innocence or guilt of the defendant.

Now, we're past that stage.

THE COURT: I understand that.

MR. STROTHER: We're at a whole different stage in this proceeding. And a stage where I think the jury has a right to see – a right to see – just exactly what that man did out there.

THE COURT: On what basis?

MR. STROTHER: On the basis for them to make their decision: Is this crime a result of depravity of mind of the Defendant? Is it atrocious?

THE COURT: In accordance with the definition of "atrocious" and "depravity of mind" as set by the Supreme Court?

MR. STROTHER: Your Honor, I think, ultimately, it is a jury who determines –

THE COURT: Well, that may be where we –

MR. STROTHER: – whether or not those things are met. I mean, that's the law –

THE COURT: That's not what the Supreme Court of [2140] this state just got through saying, General.

MR. STROTHER: Well, Your Honor, I'm sorry, I do not have the advantage of having seen that case. But I think – Well –.

THE COURT: Well, I think that you – I'll be glad to consider any law that will allow me just to let the jury look at a picture, such as this, and make a determination as to whether or not that crime is heinous and indicates depravity of mind. I'm going to have to look at some cases, and I'll give you the opportunity to show me some that you feel would support your position.

But I do not feel they're admissible for that purpose at this point. I'd be glad to consider the matter further.

MR. STROTHER: Your Honor, I think this case has gone just as long as it needs to go. I'll withdraw my offer of proof.

THE COURT: Well, you know, that's up to you.

MR. STROTHER: That's exactly – I –.

THE COURT: Yes, I understand. Okay.

We'll recess for lunch and we'll resume at 2 o'clock. Take the jury to lunch.

*** (WITNESS EXCUSED FROM STAND) ***

[2141] (Whereupon, court recessed at 12:55 p.m., resuming its session at 2:10 p.m., and the following proceedings were had out of the presence of the jury:)

THE COURT: You can bring them in.

General. –

MR. STROTHER: Your Honor, I wonder if before we bring the jury in –

THE COURT: Yes. I was going to mention something to you. I was confused over the recentness of the case that I mentioned a while ago. I knew that there was one that had just come down, but the case that I had in my mind, the facts on, was the *Prichett* case, which was decided in the Fall, –

MR. STROTHER: That's what I have right here, Your Honor.

THE COURT: And that's the case. I was confused about the one that just came down, as far as that –

MR. STROTHER: If I can have two minutes of the Court's time, I'd like to attempt to distinguish the *Pritchett* case from the situation that we have before us at this time, based on evidence already in this Court – already in evidence.

THE COURT: All right, go ahead.

[2142] MR. STROTHER: As I understand it, the *Pritchett* case goes off, basically, on the proposition that the victim in that case was – The only evidence on which the State was relying in its proof of "heinous", "atrocious", "depravity of mind", was the fact that the victim was shot twice with a shotgun, and that death from the first shot was instantaneous.

Here, there's clear proof that the death of neither of these individuals was instantaneous from the first blow, but was the result of multiple, repeated blows, to wit, the fact that both victims had multiple defensive wounds on their hands. While they're still alive they're repeatedly being hit by the individual inflicting these wounds, –

THE COURT: Yes, I understand.

MR. STROTHER: – evidencing depravity of mind, which I see defined in there as nothing more than depravity of mind. And I think these photographs go to that, and that's all I have to say about it.

THE COURT: I don't think the photographs go to it for the simple reason they don't show the blows to the head, General. That's the point I was trying to make a while ago. Now, insofar as the other point that causes concern is, it's obviously the law and the intent of the Supreme Court of this state, if you prove one clearly supported aggravated circumstance, two clearly supported aggravating – [2141] three – but a jury finds one that they feel is unsupported, that reverses the whole case for sentencing procedure. That's the problem we're dealing with.

But I do not feel that the pictures of the people go to show, or establish, the heinous nature of the crime. They don't show the wounds. And I fail to see their probative value. And I am persuaded that while generally speaking – while generally speaking, we view evidence differently during the guilt or innocence proceedings, as we do in the punishment proceedings, when we're dealing with the death penalty I'm convinced that the Supreme Court of this state is not going to deal with it any differently. Now, that's my philosophy based on – my impression of the rulings that they're making. But I honestly do not feel that these pictures establish what you have described, which I think the jury can rely on in making that determination as to whether or not that aggravating circumstance exists. I'm not saying that you don't have evidence and this jury can't consider that this was heinous or atrocious, and so forth, you see.

MR. STROTHER: I understand.

THE COURT: Okay. But I was confused about the new case as to the facts of it – you know, the one that just came down where they reversed. I had seen it, but also had these other cases out that I'd been reviewing before the [2144] start of the case, and I was confused on the facts.

Okay, bring them in.

(Whereupon, the jury was recalled to open court at 2:15 p.m., and the following proceedings were had in its presence:)

MR. STROTHER: The State rests its punishment phase proof in chief.

MR. DICE: May it please the Court, the Defense rests.

THE COURT: All right, you may argue.

MR. PATTERSON: May it please the Court, and ladies and gentlemen of the jury, I'll be very brief in my remarks to you in this particular case, but in the brevity of my speech to you I would like to call to your attention the proof that you have seen here today concerning, as we had mentioned earlier during voir dire examination, the proof as relates to aggravating circumstances and mitigating circumstances.

The Court, very shortly – and I'm pleased that the charge is not as long as the one was yesterday, but he will charge you again, just as he did yesterday, and you will have the charge with you and the instructions as relates to the particular punishment stage of the trial.

[2145] It's the State's position – and I urge you to consider these things, as being the aggravating circumstances that have been presented to you here today, apply it to the law as His Honor, Judge Beasley, will charge it to you, these things.

That one, that the Defendant was previously convicted of one or more other felonies, other than the present charge, which involved the use of threat of violence to the person. I think the proof was that he used a weapon of violence, I believe he said – I'm not certain he said "pistol", but a weapon of violence in the three convictions in the State of Oklahoma, which I find it a little bit unusual that the convictions in those particular cases occurred on August 9, 1972. The robbery here occurred –

now, bear in mind, that was the convictions of Mr. Cone on that date. If you recall, it was brought out that it was three separate robberies extending from – I believe in November or December of 1979 until some portion, I believe May – I'd say 1969, or '70, but it covers a period of time from November to May of the following year. The years exactly, I do not recall.

Another aggravating circumstance that I ask you to consider that the Court will charge you is, that the murder was especially heinous, atrocious, or cruel, in that it involved torture or depravity of mind.

[2146] I very briefly call your attention to of how Mr. and Mrs. Todd, in this particular case, were beaten about the head – I believe Mrs. Todd was beaten and struck twenty-two times, in which her skull was cracked in; and Mr. Todd, likewise, was beaten sixteen times, having his skull cracked in, and going in and injuring the brain.

In addition to that, it would appear that they were alive for a period of time during the attack due to the fact that the back of the hands were injured, which would indicate that they were aware of what was going on and reacted in an effort to save their lives.

Another aggravating circumstance that I would ask you to consider, and I feel that the proof does bear out in this particular matter, that the murder was committed for the purpose of avoiding a lawful arrest or prosecution, which I feel it's obvious in the fact that he was – he had committed the robbery, initially, of Brodnax, the ensuing chase, the shooting of Officer Allen and the shooting of Doug Clark, and that he had abandoned his automobile and he had no method by which to escape. He entered

the house in question of Mr. and Mrs. Todd, and in the process of effecting his escape in getting to Key West, Florida, killed two old people for no reason, I submit to you, whatsoever. That is the law that we have.

The other one that I submit to you is a aggravating [2147] circumstance that the Court will charge you, is that the Defendant, Gary Bradford Cone, also known as Gerald Mason Harmon, committed the murder during the perpetration of a burglary, which, by definition, is an aggravating circumstance.

There are four that I would call to your attention that, I submit to you, have been proven to you beyond a reasonable doubt and to a moral certainty.

If you will, read the portion of the charge – which it says – if the aggravating circumstances outweigh the mitigating circumstances, the punishment for these two cases is death by electrocution.

I ask you to follow the law of the State of Tennessee, and which you indicated that you would.

I appreciate your service as a juror. Thank you.

THE COURT: Mr. Dice.

MR. DICE: Defense waives final argument, your Honor.

* * *

THE CRIMINAL COURT OF SHELBY COUNTY
AT MEMPHIS, TENNESSEE

Case Nos. 74902, 74898, 74899, 74900, 74702, 74703

[Caption Omitted In Printing]

SENTENCING PHASE – MURDER FIRST DEGREE

Ladies and Gentlemen of the Jury, you have now found the defendant guilty beyond a reasonable doubt of Murder in the First Degree as charged in counts 1 & 2 of indictment numbers B74702 & B74703.

It is now your duty to determine within the limits prescribed by law, the penalty which shall be imposed as punishment for this offense. Section 39-2402, Sub-section (b), Tennessee Code Annotated, provides that a person convicted of Murder in the First Degree shall be punished by death or by imprisonment for life.

In arriving at this determination, you are authorized to weigh and consider any mitigating circumstances and any of the statutory aggravating circumstances which may have been raised by the evidence throughout the entire course of this trial, including the guilt finding phase or the sentencing phase or both. The Jury are the sole judges of the facts, and of the law as it applies to the facts in the case. In making up your verdicts, you are to consider the law in connection with the facts; but the Court is the proper source from which you are to get the law. In other words, you are the judges of the law as well as the facts under the direction of the Court.

The burden of proof is upon the State to prove any statutory aggravating circumstance or circumstances beyond a reasonable doubt to a moral certainty.

Reasonable doubt is that doubt engendered by an investigation of all the proof in the case and an inability, after such investigation, to let the mind rest easily upon the certainty of your verdict. Reasonable doubt does not mean a doubt that may arise from possibility. Absolute certainty is not demanded by the law but moral certainty is required and this certainty is required as to every proposition of proof requisite to constitute the verdict. The law makes you, the Jury, the sole and exclusive judges of the credibility of the witnesses and the weight to be given to the evidence.

Section 39-2404, Subsection (i), Tennessee Code Annotated, provides that no death penalty shall be imposed by a Jury but upon a unanimous finding of the existence of one or more of the statutory aggravating circumstances, which shall be limited to the following:

1. The murder was committed against a person less than twelve years of age and the defendant was eighteen years of age or older.

2. The defendant was previously convicted of one or more felonies, other than the present charge, which involve the use of threat or violence to the person.

   Robbery is the felonious and forcible taking from the person of another, goods or money of any value, by violence or putting the person in fear.

3. The defendant knowingly created a great risk of death to two or more persons, other than the victim murdered, during his act of murder.

4. The defendant committed the murder for remuneration or the promise of remuneration, or employed another to commit the murder for remuneration or the promise of remuneration.

5. The murder was especially heinous, atrocious, or cruel in that it involved torture or depravity of mind.

   "Heinous" means extremely wicked or shockingly evil.

   "Atrocious" means outrageously wicked and vile.

   "Cruel" means designed to inflict a high degree of pain, utter indifference to, or enjoyment of, the suffering of others, pitiless.

6. The murder was committed for the purpose of avoiding, interfering with, or preventing a lawful arrest or prosecution of the defendant or another.

7. The murder was committed while the defendant was engaged in committing, or was an accomplice in the commission of, or was attempting to commit, or was fleeing after committing or attempting to commit, any first degree murder, arson, rape, robbery, burglary, larceny, kidnapping, aircraft piracy, or unlawful throwing, place or discharging of a destructive device or bomb. Burglary is the unlawful breaking and entering a dwelling house [illegible] with intent to commit a felony therein.

8. The murder was committed by the defendant while he was in lawful custody or in a place of lawful confinement or during his escape from lawful custody or from a place of lawful confinement.

9. The murder was committed against any peace officer, corrections official, corrections employee or fireman, who was engaged in the performance of his duties, and the defendant knew or reasonably should have known that such victim was a peace officer, corrections official, corrections employee or firearm, engaged in the performance of his duties.

10. The murder was committed against any present or former, judge, district attorney general or state attorney general, assistant district attorney general, or assistant state attorney general due to or because of the exercise of his official duty or status and the defendant knew that the victim occupies or occupied said office.

11. The murder was committed against a national, state, or local popularly elected official, due to or because of the official's lawful duties or status, and the defendant knew that the victim was such an official.

Section 39-2404, Sub-section (j), Tennessee Code Annotated, provides that in arriving at the punishment, the Jury shall consider as heretofore indicated, any mitigating circumstances which shall include but not be limited to the following:

1. The defendant has no significant history of prior criminal activity;

2. The murder was committed while the defendant was under the influence of extreme mental or emotional disturbance;

3. The victim was a participant in the defendant's conduct or consented to the act;

4. The murder was committed under circumstances which the defendant reasonably believed to provide a moral justification for his conduct;

5. The defendant was an accomplice in the murder committed by another person and the defendant's participation was relatively minor;

6. The defendant acted under extreme duress or under the substantial domination of another person;

7. The youth or advanced age of the defendant at the time of the crime;

8. The capacity of the defendant to appreciate the wrongfulness of his conduct or to conform his conduct to the requirements of the law was substantially impaired as a result of mental disease or defect or intoxication which was insufficient to establish a defense to the crime but which substantially affected his judgment.

If you unanimously determine that at least one statutory aggravating circumstance or several statutory aggravating circumstances have been proved by the State, beyond a reasonable doubt, and said circumstance or circumstances are not outweighed by any mitigating circumstances, the sentence shall be death. The Jury shall state in writing the statutory aggravating circumstances or statutory aggravating circumstances so found, and signify in writing that there were no mitigating circumstances sufficiently substantial to outweigh the statutory aggravating circumstance or circumstances so found.

You will write your findings and verdict upon the enclosed form attached hereto and made a part of this charge. Your verdict should be as follows:

(1) We, the Jury, unanimously find the following listed statutory aggravating circumstance or circumstances;

(The Jury will then list the statutory aggravating circumstance or circumstances so found beyond a reasonable doubt).

(2) We, the Jury, unanimously find that there are no mitigating circumstances sufficiently substantial

to outweigh the statutory aggravating circumstance or circumstances so listed above.

(3) Therefore, we, the Jury, unanimously find that the punishment shall be death.

The verdict must be unanimous and each Juror must sign their name beneath the verdict.

If you unanimously determine that no statutory aggravating circumstance has been proven by the State beyond a reasonable doubt; or if the Jury unanimously determine that a statutory aggravating circumstance or circumstances have been proved by the State beyond a reasonable doubt; but that said statutory aggravating circumstance or circumstances are outweighed by one or more mitigating circumstances, the sentence shall be life imprisonment. You will write your verdict upon the enclosed form attached hereto and made a part of this charge.

The verdict should be as follows:

"We, the Jury, unanimously find that the punishment shall be life imprisonment."

The verdict must be unanimous and signed by each Juror.

The Jury in no case, should have any sympathy or prejudice or allow anything but the law and evidence to have any influence upon them in determining their verdict. They should render their verdict with absolute fairness and impartiality as they think truth and justice

dictate. Take the case, consider all the evidence fairly and impartially and report your verdict to the Court.

/s/ James C. Beasley
JUDGE

IN THE CRIMINAL COURT OF TENNESSEE FOR THE THIRTIETH JUDICIAL DISTRICT AT MEMPHIS

GARY BRADFORD CONE, Petitioner/Appellant,	)	CASE NO. P3653
VS.	)	
STATE OF TENNESSEE, Respondent/Appellee.	)	

PETITION FOR POST-CONVICTION RELIEF HEARING
APRIL 28-29, 1986

* * *

[91] JOHN C. DICE was called, and after having been duly sworn, was examined and testified as follows:

DIRECT EXAMINATION BY MR. KOPERNAK:

Q State your name for the record, please.

A John Chapman Dice, D-I-C-E.

Q Mr. Dice, were you retained in the Cone case?

A Yes sir, I was.

Q Were you retained well in advance of trial?

A Yes, sir, I was, by Mrs. Cone.

Q Okay. Did you conduct a thorough investigation into the facts with regard to guilt or innocence?

A I believe I did, yes, sir.

Q Okay. And did you conduct a thorough investigation with respect to preparation for the penalty phase of the trial?

A Absolutely.

Q Okay. Can you tell us the nature and extent of your investigation and preparation for the penalty stage?

A Yes. Mr. Cone was referred to me by the Vietnam [92] Veterans' Center of which Mr. Ed Wallen (phonetic spelling) was the director. Mr. Kopernak, I am the attorney, although I've never mentioned this much to the courts, but I am the attorney who developed the Vietnam Veterans' Stress Syndrome defense across this country along with one other lawyer up in New York. I served as pro bono counsel to the Vietnam Veterans' Center for years. What happened basically is this. When I was contacted by the family of Mrs. Cone, who is a retired Army sergeant's wife, a military wife, had very little money, because of the nature of the type of charge it was, and we were already heavily involved in doing that type of work, I agreed if I could assemble a staff around me; people like Ms. Ferguson who developed Vietnam Veterans' Stress Syndrome as a defense, Katherine M. Witherspoon, who is sitting next to her in this courtroom and is probably the most brilliant research mind I've ever known, and the investigators, et cetera, that we would take the case.

What happened basically is this. The Vietnam Veterans' Center provided doctor Matthew Jeremko as an expert, doctor Jonathan Lipman, who is probably the leading research scientist in the world, in my opinion, in amphetamine psychosis. He came on board for very little money. Mr. Ralph Nalley, of the Public Defender's Office,

voluntarily gave his time, as did Mrs. Lee Abbott (phonetic spelling), to assist us in the defense of this young man's case. With that team [93] assembled, and I was completely responsible – you can delegate authority, in my view point, but I was completely responsible for the strategy that was made and everyone had assigned roles. And I'm proud of my staff.

So, we took on the case at that point. My first interview with Mr. Cone himself was when he returned from Florida. His mother – the Vietnam Veterans' Center provided a social workup, Mr. Wallen went down and interviewed his mother. We've got newspaper articles on the case; I know all about his background in school, his brilliance academically; Mr. Gary Cone graduated from the University of Arkansas cum laude. He was a very gentle child. He had people in his community who were stunned at what had happened, and so we did a thorough social background investigation of him and knew just about everything there was to know about him, including reviewing his military records in depth. I've been in the armed forces myself for twenty-four years, ever since I went to West Point as a seventeen year old boy. I was more familiar than the average lawyer would be with the military aspects of this case, so in preparing the mitigating circumstances or looking at both aspects of the trial, we developed a strategy from the beginning, on the basis of what we had after a very thorough investigation. Mr. Wallen holds an MSW and is recognized throughout the Veterans Administration as someone who does that kind of social background check. So, [94] that's the way we started it.

Q All right. Mr. Dice, was any proof put in the record in the trial at any stage that Mr. Cone was a gentle child?

A No. I think that his mother testified that he changed dramatically when he came back from Vietnam, as did so many people, but in testimony, Mrs. Cone did not do well as a witness and we stayed away, for tactical reasons, from a lot of his family background. I think we got into the record, and I don't recall, that he watched his brother drown when his brother was fifteen years old, I think. But basically, before Vietnam Mr. Cone was a person who had had a normal life, except that he was very brilliant, and after Vietnam, he was a person who was hard on drugs and became involved in a life of crime.

* * *

[96] A * * * I examined every statutory mitigating circumstance that was present. I examined every statutory aggravating circumstance that I felt was present under the facts of these cases. I also examined the case law which says that you can put on more mitigating circumstances in a capital case than are listed by statute. And then knowing that and knowing what we were faced with from the standpoint of proof in this case formulated to trial policy, yes, I did examine them all in depth and the case law that was applicable.

Q Now, was any proof put on with respect to Mr. Cone's [97] background prior to Vietnam?

A Yes, to a certain extent with his mother.

Q Mr. Dice, isn't it fair to say that you tried to put on more of that kind of proof, but it was objected to

because it wasn't relevant to your defense of Vietnam Veterans' Stress Syndrome?

A I don't remember completely from the transcript. I felt that the defense was repeatedly blocked from some of the things we tried to do, yes, Mr. Kopernak. I feel that.

Q How much do you recall Mrs. Cone's testimony?

A She was a mother struggling to protect her son, but she had not had very much contact with Gary since he'd come home from Vietnam, and the changes that had occurred in him were not as well known to her perhaps as if he had lived at home. I did not feel that she did well on the stand. We talked with her several times about her testimony, but Mrs. Cone had had certain ailments and she was under a great deal of pressure, as any mother who loves her son the way she loves Gary, would be in those circumstances.

* * *

[101] A One of the things that Mr. Strother did, and he was an extremely capable prosecutor, as was Mr. Patterson, but they used Mr. Cone's brilliance against him to show that he was a schemer and a planner; in other words, I had some problems with, what am I going to do here? How am I going to approach these mitigating circumstances?

If you'll examine Mr. Cone's D.D. Form 214, which is his discharge from the Army, Mr. Cone was decorated with the Bronze Star, according to his statements to us, after he came home from Vietnam. It is not on his D.D. Form 214. However, that type of thing was not unusual from the standpoint that many of the returning veterans

did not have their decorations listed on their discharges, so one of the things that we did in trial strategy in terms of putting on our mitigating circumstances, I knew, because of pretrial discovery and one phone call to the penitentiary where he'd been, that Mr. Cone's Bronze Star was reflected on his prison records and in his military records. So, I let Mr. Strother run Mr. Blackwell in here on me and I used him to establish that Bronze Star.

* * *

[130] Q Okay. I'm still not clear on this and it's a simple question. Did you discover any authority that encouraged or said it was a good tactic or even a tactic that might be employed at the penalty stage of a capital case, and the tactic I'm referring to is waiver of final argument.

A No, I didn't look for that. I looked for authority under the law, not speculation by authors or people in sterile academia, but by trial lawyers, trial lawyers or law that said from a judge that, Mr. Dice, you cannot waive final argument, and I couldn't find any in the State of Tennessee which said that as a lawyer, you know, that I couldn't do that. It was my tactical decision to make after evaluating all these factors that we talked about, and I did it.

Q While we're on that subject, will you summarize for us all the reasons that you had at that time, and not at this [131] time, but at that time, for waiver of final argument in the penalty phase of the Cone matter?

A Okay. Number one; I thought that we had put on almost every mitigating circumstance that we had. Okay? In the first phase of the trial.

Number two; I managed to sucker Mr. Patterson and Mr. Strother into putting on my Bronze Star decoration without having my defendant testify, which I felt was pretty good trial tactics. I know when I asked Mr. Blackwell that question, one of the two of them over there became unglued. Okay.

Number three; I thought the trial judge had lost control of the case. He allowed Mr. Strother to call me unethical twice in front of the jury, and he did several things in there which had made my client extremely angry. I forgive Mr. Strother for that. I don't think he really believes it, but he's a trial lawyer and he took the position.

Okay. I'm saying the general feeling of that was going – the trial was not being conducted neutrally by the judge. Okay.

The other thing that got to me about the aspects of why to waive, I knew again that they were so much out for blood that they'd screw up their own trial in terms of what the jury was going to find.

Okay. Another factor is that my defendant told me that he would probably explode on the stand with anger if [132] General Strother cross-examined him, and I know Don Strother to be an extremely competent cross-examiner.

Q Just so we'll be clear now. I've asked you to name the reasons for waiving final argument. Was whether or

not what you just said about Mr. Cone possibly exploding, did that have anything to do with waiving final argument?

A Absolutely it did. I didn't make that decision at the last moment at all, Mr. Kopernak. That decision was carefully planned out. When the jury was only out for an hour, when they were only out for an hour, and I think it was close to that, and long before the trial I considered that as a trial tactic. Now, all these factors were being considered, not just one.

Q Okay. Go ahead, please.

A Okay.

Q Do you want me to go over those so you'll – (Interrupted)

A No, because I recall most of them pretty clearly. You know, we'd had all those things go on, and some of the things which had happened in the trial, and when Ural Adams had done that in the Groseclose case and he and I had spent so much time talking about whether or not to do it, I considered that perhaps because of the nature of the opposition in this particular case, that it might be an effective tactic. And I'll tell you this much. Let's say that when we'd gotten [133] down there that Mr. Strother had gotten up and made the first argument, I might not have waived at all if I knew that Patterson was going to make the kill argument. I might not have made it. But once Patterson made the first argument, and then those statements that were reported in the press where Mr. Patterson said, well, we're here because it's wrong to kill people. I'll never forget that one as long as I live.

Okay. When he made that portion in another portion of the trial. So, what I chose to do is to make my closing argument in my opening argument and then suckered them along because they'd already made that mistake, as far as I was concerned. Okay? And see whether or not the jury would take what little mitigating circumstances we had and give us a verdict and keep him alive.

* * *

[192] VALERIE CONE was called, and after having been duly sworn, was examined and testified as follows:

DIRECT EXAMINATION

BY MR. KOPENAK:

Q State your name for the Court, please.

A Valerie Cone.

Q Mrs. Cone, are you related to Gary Bradford Cone?

A I'm his mother.

THE COURT: How do you spell your first name?

THE WITNESS: V-a-l-e-r-i-e.

Q Do you recall back when your son had his trial here in these courts?

A Yes, sir, I do.

Q Do you recall conferring with Mr. Dice about that trial?

A Yes, sir.

Q Did Mr. Dice ever ask you if you wanted to appear as a witness to ask the jury to spare your son's life?

A No.

[193] Q Is that something that you have strong feelings about?

A Yes, sir.

Q And if you were permitted to do that, would you, in fact, want to take the stand and make a plea for your son's life?

A Absolutely.

Q All right. Now, you did testify at that trial.

A I did.

Q All right. And do you remember what you testified to in that trial?

A Yes, and it was mostly connected with just questions as, do you remember certain certain dates, and things like that.

Q Okay. But you never testified as to your son's early childhood and family experiences?

A No, sir.

Q All right. Mrs. Cone, could you tell us who Ella Tullis (phonetic spelling) is?

A That's my sister.

Q All right. Did she know Gary Cone very well?

A Yes, she did.

Q How did she know him?

A Well, she lived fairly close to my mother, and every time we'd come back from leave, you know, my husband was [194] a career man, well, he always got to see her. And then when I was back living there when my husband was overseas, it's only natural, he went to school with her baby daughter, you know, because they was close to the same age.

Q Would you say that she knew him well?

A Yes, indeed.

Q Okay. Are there other persons who are still around who knew Gary well?

A Yes, he has an aunt that knows him well.

Q And what is her name, please?

A Her name is Jimmie Ford now.

Q What's that last name, please?

A Ford.

Q Okay. And where is she staying now? Do you know?

A Yes, she lives in North Little Rock.

Q Okay. And she knew Gary well?

A Uh-huh.

THE COURT: What's the relation?

THE WITNESS: Aunt.

Q Do you know a person by the name of Forrest Clarey?

A I do. He is a – he was a school teacher and he's retired now.

Q All right. Was he one of Gary's school teachers?

A I think – (Interrupted)

[195] MR. PETERSON: Your Honor, if I may. This is all well and good, but we can list hundreds of names here and it has nothing to do with whether or not Mr. Dice and Ms. Ferguson were ineffective, or the constitutionality of his conviction, Mr. Cone's, is void or voidable. This is irrelevant and immaterial.

THE COURT: Mr. Kopernak, what are you trying to show by this?

MR. KOPERNAK: Well, one of the things that concerns me, Your Honor, is we may be required, and I don't think that laws are real clear on this, but we may be required to make a showing that, in fact, other mitigating proof was available, which proof was not put on in the penalty phase of this trial.

I think Your Honor needs to have some idea what proof was available that was not put on that could have been mitigating proof under *Lockett v. Ohio*. That's the purpose of asking these questions, to identify these persons that could have appeared as mitigating witnesses on behalf of Mr. Cone at the penalty phase. It's a matter of showing the Court that there was evidence available that, in fact, was not presented.

THE COURT: Of course, you don't know what these witnesses would have said. Is that right?

MR. KOPERNAK: What I would like to do, since we [196] are at this stage at this point of trying to make a legal determination under all the facts whether or not the constitutional standards have been met in this case, I would request of Your Honor a period of time, and we don't need long, maybe two weeks, in which to prepare short affidavits that would function as proffers of proof as to what these various witnesses could testify to so the Court will have that before Your Honor, if you find it necessary to make a determination with respect to the nature of mitigating evidence that was available.

MR. PETERSON: Your Honor, again, that's all well and good, but he's tied in by the four corners of his petitions, and the State submits that what he's doing is attacking what was not done and not what should have or could have been done. What we're talking about is what Mr. Dice and his team that he described yesterday are accused of not doing, and to come with affidavits or testimonies about all these people he's asking about is irrelevant within the four corners of his document.

MR. KOPERNAK: Judge, if I may respond. Let me get the corners of my document out here.

On page 4 of the amended petition for post-conviction relief, paragraph eleven, subsection A, it is alleged (reading),

> " . . . that at the penalty trial, [197] Defense counsel put on no proof of mitigating circumstances and waived argument, constituting an inadequate strategy as a matter of law."

It may well be that the law is that in any capital case, regardless of what proof was put on in the guilt and innocence stage, that it is outside the range of competence for a lawyer to both fail to put on mitigating proof and waive final argument. We are taking that position, that there's no imaginable circumstance under which that would pass constitutional muster under *Ferman v. Georgia* and its progeny.

As was indicated from the expert witnesses yesterday, most trial lawyers, and I think most authorities –

THE COURT: Well, let's not go into an argument. You've got a witness on the stand.

MR. KOPERNAK: Well, I'm just trying to tell you why it's important to ask these questions.

THE COURT: Well, I've heard your statements. I don't think we need to go any further on that.

MR. KOPERNAK: All right.

THE COURT: What do you want to ask this witness about other relatives?

MR. KOPERNAK: Right, that's what we're doing.

THE COURT: All right.

[198] MR. KOPERNAK: And then I'm going to ask the Court to be allowed to submit affidavits as to – (Interrupted)

THE COURT: As long as you don't go too far in that. I might not be interested in what they have to say at

this particular point because – I may or may not, I don't know.

MR. KOPERNAK: I understand. It's for the record as much as anything, Judge.

THE COURT: All right. Any further questions? The Court will let you ask – you asked about an aunt of Gary Cone's.

MR. KOPERNAK: Virginia Ford, and I just asked about Forrest Clarey.

THE WITNESS: No, the Ford you're talking about is his aunt, you see.

THE COURT: What's her name?

THE WITNESS: Her name is Jimmie Cone.

THE COURT: Jimmie?

THE WITNESS: Jimmi Cone, that's right. She's from North Little Rock.

THE COURT: I thought I heard a Ford.

THE WITNESS: There was a Ford that he was talking about just then, but it's Alvin Ford, which is just a close friend of ours.

THE COURT: And the aunt is Jimmie Cone?

THE WITNESS: That's right absolutely.

[199] THE COURT: And Alvin Ford is a friend?

THE WITNESS: That's right.

THE COURT: All right. You may proceed.

MR. KOPERNAK: Thank you.

Q Mrs. Cone, I believe you indicated that Forrest Clarey was a high school teacher?

A Yes, that's right.

Q Was Forrest Clarey a high school teacher of your son, Gary?

A I'm sure he was, you know, the last year of his schooling, last semester.

THE COURT: These names here – is it Clarey?

THE WITNESS: Clarey, C-l-a-r-e-y.

THE COURT: And Forrest?

THE WITNESS: That's right. F-o-r-d.

THE COURT: Oh, Ford. All right. Okay. High school teacher.

THE WITNESS: He's retired now but he taught my son.

Q All right. How about Robert Parini (phonetic spelling)? Who is Robert Parini?

A Well, he used to live on the street with us. I mean, we was on the same street and he played with Gary when he was a boy.

Q Does he know your son well?

[200] A I think so.

Q Okay. I believe you've already mentioned Alvin Ford. Is that right?

A Absolutely.

THE COURT: How do you spell this Robert?

THE WITNESS: I'm not sure on Parini, but he can give it to you. You know, that's Italian and it don't exactly spell like it sounds.

THE COURT: Excuse me. You may proceed.

Q Are there any other persons you can think of at the present time that knew Gary well when he was growing up or at any time?

A One more.

Q Who is it?

A Larry Douglas.

Q Larry Douglas. Who is Larry Douglas?

A He works in our post office, but he graduated with Gary.

Q Mrs. Cone, how about Linda Drear (phonetic spelling)? Do you know who she is?

A Yes, that's his first cousin, my sister's youngest daughter.

Q Okay. And she knew him well, too, did she?

A Very well.

Q Okay. Did Mr. Dice ever discuss with you about [201] the possibility of calling any of these people as witnesses?

A Well, when he first started on the case he asked quite a few questions about them, but later he discontinued asking.

Q Okay. You were at the trial, weren't you?

A Yes, I was.

Q Okay. Was any proof presented as to what kind of person Gary was?

A No.

MR. KOPERNAK: I don't believe I have any further questions.

MR. PETERSON: No questions.

* * *

FRIDAY, SEPTEMBER 19, 1986

IN THE CRIMINAL COURT OF TENNESSEE
FOR THE THIRTIETH JUDICIAL DISTRICT
AT MEMPHIS
DIVISION VII

GARY BRADFORD CONE, Petitioner, VS. STATE OF TENNESSEE, Respondent.	J. A. BLACKWELL, CLERK BY J. B. [Illegible] NO. P-3653 (Petition for Post-Conviction Relief)

FINDINGS OF FACT AND CONCLUSIONS OF LAW

FILED 9-19-86

This matter is before the Court on Petition for Post-Conviction Relief filed by Gary Bradford Cone, through his counsel, James D. Kopernak. The State is represented by Eddie Peterson, Assistant District Attorney. This petition was heard on the 29th day of April, 1986.

The questions presented are as follows:

1. Whether or not there was prosecutorial misconduct on the part of Joseph Patterson and Don Strother, Assistant District Attorneys, which affected the outcome of the trial?

2. Whether or not failure of counsel to object during the State's argument amount to ineffective assistance of counsel?

3. Was there ineffective assistance of counsel at the sentencing phase of the trial?

The Court will now consider the first question presented:

This question arises out of final argument of the prosecutors in the guilt phase, in the murder first degree trial of petitioner. It appears that the day before the murders were committed, petitioner had allegedly robbed a Big Star store and obtained $1,893.72. This robbery indictment was pending at the time of the murder trial. On the day of the murders, petitioner was being pursued by police after robbery of a jewelry store in which no money was obtained. After abandoning the automobile during the chase, petitioner eluded police and forced his way into the home of an elderly couple, the subject of the murders. Meanwhile, police found in the abandoned car a large amount of legend drugs and cash in the amount of $2,459.94.

Petitioner claims that the prosecutor's argument referring to the $2,459.94 found in petitioner's automobile as proceeds from the sale of drugs was improper; that prosecutors knew, or should have known, that more than likely this money came from the robbery of the Big Star the day before.

Petitioner's trial attorney, John Dice, pointed out in his testimony that the reason he did not object to the State's argument concerning the money found in the automobile was that he felt the damage had been done. He did not want to emphasize it further. It is hard to undo what a jury has heard, even with instructions from the Court.

The test for alleged improper prosecutorial misconduct is "whether the improper conduct could have affected the verdict to prejudice the defendant". *Judge v. State*, 532 S.W. 2d 340 (Tenn. Crim. App. 1976). Therefore, if the prosecutor's conduct and argument to the jury was improper, the question to be answered is, "Did that conduct affect the jury's verdict to the defendant's prejudice?". I think not.

In *Judge v. State, supra,* the Court pronounced five factors to be considered in determining whether the prosecutor's conduct was improper to such a degree as to warrant reversible error.

(1) The conduct complained of viewed in context and in light of the facts and circumstances of the case;

(2) Curative measures undertaken by the Court and the prosecution;

(3) The intent of the prosecutor in making the improper statement;

(4) The cumulative effect of the improper conduct and any other errors in the record;

(5) The relative strength or weakness of the case.

In considering point one, above, this Court takes into consideration the aggravated and horrible nature of these crimes; the fact that there was a large amount of drugs found in the trunk of petitioner's automobile and the abundant evidence in the case as to the murders. This Court is of the opinion and finds that the argument of the prosecutors concerning money coming from a drug sale more likely than from a pending robbery case did not

affect the outcome of the trial. Had no money been mentioned, the Court is of the opinion the verdict would have been the same, based on the facts and circumstances.

Regarding the second point raised in the *Judge* case, *supra*, this Court notes that although no curative instructions were given because of the lack of any objection, and considering the reasons given by trial counsel that he did not want to emphasize it any further since the jury had already heard it, this Court recognizes this as a viable tactic that counsel may use and does not find that Mr. Dice's use of this tactic rendered his assistance ineffective as a matter of law.

Upon consideration of the third point, Mr. Strother, the prosecutor, testified that he knew there was a pending robbery charge, but he did not concern himself with it because they were trying the murder case first. This Court finds that prosecutors knew, or should have known, that a large amount of money was allegedly taken by this defendant the day before the murders. This should not have been argued.

This Court cannot say from the evidence that prosecutors consciously argued it with this in mind. Although it appears that the $2,459.94 found in the automobile was more likely part of the $1,893.74, which was allegedly taken in the robbery the day before, there is no evidence to show it was actually a part of the robbery money. This Court cannot say, therefore, that prosecutors' argument was malicious or with wilful improper intent.

As to points four and five, this Court does not find any cumulative effect of improper conduct throughout

the record which would require a new trial in view of the strong and compelling evidence in the murder case.

This Court is of the opinion that prosecutor's conduct in this case "did not so infest the trial with unfairness as to make the resulting conviction a violation of the Fourteenth Amendment's Due Process clause". *See Darden v. Wainwright,* 106 S.Ct. 2464, June 23, 1986.

Let us turn to petitioner's allegation that he was denied effective assistance of counsel at the sentencing phase of the trial. Petitioner sets forth several claims:

1. Failure to interview critical prosecution witness Eileen Blankman;
2. Failure to adequately advise the defendant of the probable effect of his not testifying at the penalty stage;
3. Failure to adequately investigate and adequately prepare pre-trial as to mitigating factors and circumstances;
4. The defense counsel's failure at the penalty stage to put on proof of mitigating circumstances and also his waiver of argument at that stage.

These claims of ineffective assistance of counsel are considered in light of the defense offered by trial counsel. This defense, called "Vietnam Veterans' Stress Syndrome" was novel in its approach and supported by an expert witness. These claims should further be assessed in light of the testimony of several attorneys in this hearing that Mr. Dice is one of the most thorough and conscientious criminal defense attorneys in Shelby County. Although they did not agree with some of the strategies used, they

nevertheless had no doubt of his abilities and competence.

In consideration of the first allegation concerning failure to interview critical prosecution witness Eileen Blankman, the Court notes.

Mr. Dice's testimony that he did not interview Eileen Blankman; that he knew she was a prosecution witness; that he discussed it with his client prior to trial and his client strongly insisted that he wanted to "keep her out of it"; in view of the overall preparation of the defense in this case, the Court does not reach the conclusion that failure to interview this witness rendered ineffective assistance of counsel.

Looking at the second allegation, this Court finds that Mr. Dice did discuss with his client whether he should take the stand. Mr. Dice pointed out that things had gotten heated between him and prosecutors; that his client was very upset and admitted to his attorney that he would explode if he took the stand. Dice testified that he left the final decision to his client.

After considering the facts presented, this Court is of the opinion and finds that Mr. Dice did adequately discuss and advise his client as to the probable effects of his testifying at the penalty stage.

Turning now to allegations three and four, claiming failure to adequately investigate and prepare, pre-trial, as to mitigating factors, and also the failure of counsel to put on proof of mitigation in the penalty stage, including his waiver of argument at that stage. This Court finds from the facts and circumstances that Mr. Dice put a great

deal of thought and preparation in this case; further, he pointed out he interviewed numerous family members and relatives whose testimony was contradictory and generally not helpful. He said his strategy was to get as much mitigation in during the guilt/innocence phase as he could. It is the opinion of this Court that the defense attorney's performance, including his decision not to introduce any evidence in mitigation, did not fall below the objective standard of reasonableness set by the Sixth Amendment's guarantee of the effective assistance of counsel. *Darden v. Wainwright, supra. See, also, Strickland v. Washington,* 466 U.S. 668.

In reference to the waiver of final argument in the penalty phase, it was clear from testimony from the record that this was strategy on the part of defense counsel, in view of the prosecutor's (Mr. Strother) reputation for devastating closing arguments. Even the attorney testifying here at the bar confirmed the extremely effective and strong argument of Mr. Strother.

As the Supreme Court said in the *Wainwright* case, *supra,* " . . . a defendant must overcome the presumption that, under the circumstances, the challenged action of counsel might be considered sound trial strategy".

Upon consideration of all the proof presented, this Court finds as a matter of fact and concludes as a matter of law, that petitioner's counsel, John Dice and April Ferguson, did render effective assistance of counsel in all respects as required by *Baxter v. Ross,* 523 S.W.2d 930 (Tenn. 1975). Accordingly, the Petition for Post-Conviction Relief is hereby denied.

IT IS SO ORDERED, this 19th day of September, 1986.

/s/ Arthur T. Bennett
ARTHUR T. BENNETT,
Judge, Division VII

Whereupon Court adjourned until Monday morning at 9:30 o'clock.

/s/ ARTHUR T. BENNETT
JUDGE

IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF TENNESSEE
WESTERN DIVISION

GARY BRADFORD CONE,

Petitioner,

v. No. 97-2312-MI

RICKY BELL, Warden, (Filed June 1, 1997)

Respondent.

PETITION FOR WRIT OF HABEAS CORPUS

EXHIBIT 4

(Excerpts)

BEST AVAILABLE COPY

OVIDENT
E AND ACCIDENT
ISURANCE COMPANY
TANOOGA, TN 37402

INSURED'S STATEMENT OF CLAIM

Claim No. _____

LIST ALL POLICY NUMBERS FOR WHICH CLAIM IS MADE
1) _____
2) _____
3) _____
4) _____
5) _____

ame JOHN C. DICE Home Phone No. (901) 323-5710

ome Address 2384 ST. ELMO, MEMPHIS, TN
(Street No.) (City) (State/Province) (Zip Code)

ate of birth 11/12/43 Social Security No. 411-68-2577

lame of Employer DICE, BURSON & HOLDER

Address of Employer Suite 200, 240 POPLAR AVE, MEMPHIS TN 381
(Street No.) (City) (State/Province) (Zip Code)

Business Phone No (901) 521-8190 Job Title when disability began ATTORNEY/PARTNER

Description of job duties and responsibilities Full Partner in Dice, Burson & Holder

How long have you been employed in your present occupation? 12 years

Does Employer pay any part of premium for the policy (policies) for which claim is being made? Yes ✓ No ____ If yes, what per
____%. If Claim is made under two or more policies, indicate "yes" or "no" and percent for each. 1) ____ % 2) ____
3) ____ % 4) ____ % 5) ____ %. Employer's Federal tax identification no. ____

R CIDENT AIMS

Date of accident? April 19 86 How and where did it happen? Struck in the face with an opponent's racquet while playing racquetball

What injuries resulted from accident? Concussion, laceration under left eye.

R CKNESS AIMS

Date sickness began? Feb 19 86 Nature and details of sickness Psychological problems, abdominal pains, blurred vision, headaches, slurred speech

Date you last worked? 2-4 19 86 Date of first medical attention for the disabling condition? 4-13 19 86
Last treated 8-18

List dates, names and addresses of all physicians consulted:

Date	Name	Address
4-13-86	St. Francis Emergency Room	Park Ave., Memphis TN
5-18-86	Office of Louis E. Tyler, M.D.	4339 Elvis Presley Blvd, Memphis TN
8-7-86	John Hutson, M.D.	Two Stage Rd., Memphis TN

OR ...on
LL LAIMS

If hospitalized, dates admitted and discharged 9-5-86 thru 9-11-86

Hospital name(s) and address(es) Baptist Central Unit, Memphis TN

Dates of total disability (entitling to weekly income) From ____ 19 ____ through ____ 19 ____

First date returned to work or place of business Still not returned to work

Dates of partial disability: From ____ 19 ____ through ____ 19 ____

If you have not yet returned to work, when do you expect you will be able to? Unknown 19 ____ Will a cut
to full on that basis be satisfactory?

Have you ever had claim or disability ... ? ... If yes, list dates, names and addresses of physicians and hosp

Date Name Address

ee ttached Sheet

HUTSON'S FILE 8

87

BEST AVAILABLE COPY

Clinical Psychologist's

ATTENDING PHYSICIAN'S STATEMENT FOR DISABILITY CLAIM

Name of Patient John C. Dice Date of birth 12 Nov 43

Diagnosis and concurrent conditions 296.62 Bipolar Disorder - Depressed (as of Sept 96)

When did symptoms first appear or accident happen? October 1995 - initial hospitalization
February 1996 - current deterioration

When did patient first consult you for this condition? 11 October 1995

Has patient ever had same or similar condition? Yes ____ No ____ I am not certain

If yes, state when and describe the patient was reported as having some previous episodes of major depression but they were apparently not as incapacitating as her last episode

Name and address of referring physician or other treating physician Randall D. Markowitz M.D.
1226 Eastmoreland Avenue Memphis

Nature of treatment (including surgery and medication prescribed, if any) Outpatient psychotherapy. In-patient psychiatric care, anti-depressant medication was prescribed but refused by the patient. The patient obtained a number of medical consultations on his own.

Dates of treatment: Hospital 5-12 September 1996
(Name of Hospital Methodist Central Hospital - Memphis)
Office 21 Oct, 2, 14 Nov 95, 10, 23 Feb; 4 Sept, 2 Oct 96.

What are the patient's present limitations? Complains of disturbed sleep, impaired memory, inability to concentrate but seems almost normal at times, personality [illegible] inappropriate behavior

In your opinion, is the patient now necessarily totally disabled? Yes ____ No ____ If yes, when did total disability begin? I told the patient on 2 Feb 96 that I did not consider him competent to make decisions and his psychological reports indicated that in their opinion he was not able to work and his psychiatrist reported that in their opinion he was unable to work.

When can patient resume part time work? ____

When can patient resume full time work? ____

Is patient still under your care for this condition: Yes ____ No X

Name and address of any other insurance company to which this loss has been reported:

Name Address

Remarks:
The patient allegedly died by his own hand between 6 and 8 October 1996.

Dear Doctor: Your opinion on the degree of disability is essential; therefore we ask that you, as the attending physician, personally sign this report.

John R. Hall Ph.D. Clinical Psychologist [signature]
Print name Degree Signature

Date 22 October 1996 Phone No. 901 388 1973

Street Address 1 S120 Idlewood Road City or Town Memphis

State or Province Tennessee Zip Code 38134

HUTSON'S FILE 11

John Dice

02/10/86 Very tangential, some pressure of speech, grandiosity, peresecutory ideas, not sleeping, some religiosity, "crusading against windmills". Paranoia (actually seen on evening of 9th).

/s/ John R. Hutson

02/22/86 Some improvement, slightly more settled, but still not very functional – 40%-45%.

/s/ John R. Hutson

09/04/86 Some insight. Appears to be coming out of psychosis/depression etc. Financial and Professional trouble. rec: hospitalization at Methodist Central for medical evaluation & because of concern over dysfunctioning.

/s/ John R. Hutson

10/02/86 Depressed, concerned over impotence, described head injury in April, suicidal contract made as he admits thoughts but denies plans and his religious issues with ~~ideas~~ Neurological to be set up with ~~Batinini~~ Bartonini (neurological).

/s/ John R. Hutson

IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF TENNESSEE
WESTERN DIVISION

GARY BRADFORD CONE Petitioner	)	No. 97-2312-M1
v.	)	Judge McCalla
RICKY BELL, Warden, Respondent	)	(Filed Dec. 9, 1998)

MOTION TO EXPAND THE RECORD/
ALTERNATIVELY
MOTION TO ALLOW PARTIAL OFFER OF PROOF

EXHIBIT 6

WEST END PSYCHOTHERAPEUTICS CENTER
SUITE 607, PARKVIEW TOWERS
210 25th AVENUE NORTH
NASHVILLE, TENNESSEE 37203
Telephone (615) 327-3620

Clinical Psychology GILLIAN BLAIR, Ph.D.

PSYCHOLOGICAL EVALUATION
Confidential

NAME:	Gary Bradford Cone
DATE OF BIRTH:	10/11/48
AGE:	42 years
EDUCATION:	B.S.
DATES EVALUATED:	10/17; 10/24; 10/31 and 11/7/90
REFERRAL:	Dennis Balske, Attorney.

SUMMARY

This 42-year-old caucasian male, who is under sentence of death in the State of Tennessee, currently functions within the range of superior intellect. This is generally consistent with an evaluation conducted in 1981. However, this represented some deterioration from his premorbid level, which apparently was within the very superior range. Discrepancies were apparent between various cognitive domains. Psychomotor retardation was in evidence and in part accounted for lowered scores on certain timed tests. This slow tempo, and general level of inefficiency was also apparent on tests of personality. Resentfulness, social alienation and cognitive disorganization at times of stress were observed characteristics. Test data, observation and social history cumulatively presented a picture consistent with the following diagnoses:

Post-traumatic stress disorder, superimposed on early onset
Dysthymia
Polysubstance dependence, in remission
Personality disorder not otherwise specified (avoidant, schizoid, dependent).

REFERRAL

Gary Cone was referred for psychological evaluation by his attorney, Dennis Balske. Mr. Cone is under sentence of death for a crime committed in August 1980. Psychological and psychiatric assessments at the time of arrest and trial were inconclusive. For example, one such evaluation indicated the presence of significant disturbance, perhaps schizoaffective in nature. Yet another found no evidence to support the presence of any mental disturbance. Expert

witness testimony at trial raised the possibility of a drug induced psychosis, or opiate withdrawal symptoms to account for apparent behavior. In addition, the possibility of a post-traumatic stress disorder secondary to experiences in Vietnam was also raised. Evaluation at this time was sought to help clarify some of the above issues.

SOURCES OF INFORMATION

Wecshler [sic] Adult Intelligence Scale – Revised (WAIS-R)
Booklet Category Test (BCT)
Wisconsin Card Sorting Test (WCST)
Trailmaking Test, Parts A & B
Wechsler Memory Scale – Revised (WMS-R)
Beck Depression Inventory (BDI)
Incomplete Sentences Blank (ISB)
Minnesota Multiphasic Personality Inventory – 2 (MMPI-2)
Millon Clinical Multiaxial Inventory – II (MCMI-II)
Rorschach
Clinical interview
Review of available records.

SOCIAL HISTORY

A full social history will not be reported here, since it is readily available elsewhere.

Briefly, Gary Cone was the youngest of four children born to Valerie and Zack Cone. Zack was a career NCO in the military, and by virtue of this, the family moved around extensively. Mr. Cone Senior died of a myocardial infarct in November 1972. Mrs. Cone is living, but has had a stroke, and suffers from hypertension. Of the four children, only two are still living, Gary and his older sister Rita. The older child, Zack Leonard, died at age 15 of a

heart attack, following exposure to icy-cold lake water. Zack had residual heart problems secondary to rheumatic fever. Gary was 8 or 9 at the time of his brother's death, and remembers seeing Zack's body being hauled from the lake. It was reported by family members that Gary was greatly disturbed by his brother's death. An older sister, Sue, who was about five years older than Gary, died in February 1990 of breast cancer. Gary was extremely close to both of these siblings. Rita, is legally blind, a residual of measles at age four. None of the Cone children ever married.

Gary's early development was apparently unremarkable. His mother described him as a "perfect" child. There was absolutely no suggestion of any behavioral disturbance, even in adolescence. Gary was described as a quiet, studious child. However, his relationship with his father was cool, presumably because of Gary's reluctance to participate in typically masculine pursuits, such as deer hunting.

Physical health was apparently within normal limits. Gary entered school at age five, turning six soon after. Grades were always good. Gary spent his senior year in high school living with his grandmother. It was not clear if this was necessitated by a family move, or the result of conflict between Gary and his father. Following graduation, Gary enlisted and served in the US military 1966 to 1969. He was posted to Germany, and from there volunteered for Vietnam. A dramatic difference in Gary was noted by family members on his return. He was described as edgy, hyperactive, and emotionally estranged. Gary attended the University of Arkansas 1969 to 1972, and achieved a B.S. in business and finance. During this time

Gary's associates were mainly Vietnam veterans. While a student he met, and became engaged to, a young woman Glenda, who graduated ahead of Gary and moved to Tulsa to work. On his graduation Gary took a trip alone to Europe. On his return he turned himself into authorities in Oklahoma and received a 25-year sentence for armed robbery. A few months later, October 1972, an attempted escape brought another three years, with one year on punishment status. In November, 1972, Gary's father suddenly died. In December of that year, Glenda was raped and murdered as she left work.

Drug abuse that began in Vietnam, escalated in prison. On Gary's release in 1979, he was drug dependent. Nonetheless, he did well on the LSAT examination, and was accepted into law school for August/September 1980. Mr. Cone has been incarcerated since his arrest in Florida, in August 1980.

Review of available records revealed that Mr. Cone functioned in the very superior range intellectually (IQ reported to be 144) at the time of his parole in 1979. Psychological evaluation in February 1981 revealed significant deterioration, with intellectual functioning falling only in the high average range (Verbal IQ 125; Performance IQ 111; Full Scale IQ 120). The psychologist (Dr. Ryan) attributed this decline to the intrusion of aggressive impulse derivatives, rather than organicity. He described thought processes as concrete with some perceptual distortion. He further elaborated that Mr. Cone had difficulty "switching thoughts", and that he tended to focus specific elements of a situation to the exclusion of others. Dr. Ryan described this as predominant or pressured thoughts. The above coupled with personality

test data led Dr. Ryan to a diagnostic impression of a schizo-affective disorder combined with the chemical dependency.

BEHAVIORAL OBSERVATIONS

Gary Cone presented as a short, extremely neatly groomed 42-year-old caucasian male of average build. Dress was institutional, grooming was excellent, hair and beard were greying, and glasses were worn. Mr. Cone was reserved, softly spoken, cooperative and adequately interactive in terms of the assessment process. He was emotionally distant, and socially alienated. Affect was superficially bright, but appeared blunted at core. There was some suggestion of suspiciousness, but not to the extent of paranoia. Gary Cone can best be described as remote. Indeed, the description of Mr. Cone made in 1981 as de-personalized, with an automatic and bland style of delivery remains relevant. The almost autistic logic described then was again similarly in evidence.

Speech was soft, but articulate, coherent and relevant. Conversations were spontaneous and well organized in terms of abstract ideas. For example, he is a voracious reader, and was willing to discuss literature and ideas extensively. He was considerably less forthcoming in volunteering information about emotional issues. Generally, Gary was evasive with evidence of disorganization and fragmentation of thought in relation to social relationships. There was no evidence of florid psychosis; both auditory and visual hallucinations were denied. Suicidal and homicidal ideations were similarly denied. There was no evidence of a delusional system. Insight was abysmal,

judgement was generally poor, particularly in the realm of social situations.

Gary's description of his social history was essentially as reported briefly above, and available in the extensive records reviewed.

Gary described his childhood as typical of other military families. He said that his father was a rigid authoritarian. He felt that he was not exactly physically abusive, but was intimidating and emotionally abusive. Gary recalled his brother's death and his witness of the removal of the body from the lake. He could not remember much of how he felt afterwards. He described himself as "fading out". Gary reported that he enjoyed school. He did not describe a typical adolescence of the early 1960's.

Despite Gary's obvious difficulties with his father's authoritarian attitudes, he chose to enlist on graduation from high school. His rationale now for that behavior was that he hoped to utilize the GI education bill. Although not a combat soldier in Vietnam, Gary described disturbing and traumatic experiences while there. For example, the stench from the corpses, and the way in which they were stored in refrigerators alongside food; witnessing death; being required, even on occasion to fire a weapon; the long hours of guard duty; and the escalating drug abuse, often ostensibly sanctioned by superior officers. On his return to the United States Gary described feeling alienated from his peers, but curiously closer to his father, although there was no obvious improvement in their relationship.

As previously mentioned Gary enrolled at the University of Arkansas, where he completed his degree in 3 years,

making excellent grades. He said that being in school was "easy". During the years he was in school (1969 to 1972), most of his friends were Vietnam veterans. However, he met and became engaged to a young woman called Glenda. She was ahead of him in school, and was very active in one of the sororities. Gary said that, other than his family, she was the only person he loved. HIs description of that relationship indicated an idealized fantasy, rather than a deep emotional commitment to another. For example, Gary maintained a life-style throughout his college years that she was not privy to. Furthermore, on graduation he took a trip to Europe without her. While in Switzerland, he had a car accident and broke his leg. On his return to the U.S., he learned that a warrant was out for his arrest for armed robbery. Gary said he turned himself in to the Oklahoma authorities in August 1972 on the assumption that he would get a lesser sentence. He said that he was devastated by the 25-year sentence. In October 1972 and [sic] abortive escape led to an additional three years, with one year on punishment status. The following month Gary's father died unexpectedly. In December, 1972 Glenda was raped and murdered as she left work. Gary, of course, did not attend her funeral. However, on his release from prison he visited her grave, and said that he felt numb. During incarceration 1972 to 1979, Gary witnessed severe riots; received a head injury requiring 10 stitches; and became drug dependent. Drug of choice was dilaudid, but use was indiscriminate. Gary stated that he always believed that his drug use was under control, and that he intended to stop using once he entered law school.

Testing conditions were good. Mr. Cone was fully cooperative with the assessment process, and rapport was readily established. The following results are, therefore, felt to be an accurate representation of his current level of functioning.

TEST RESULTS

Mr. Cone was found to be functioning within the superior range of intellectual abilities (Verbal IQ 131; Performance IQ 116; Full Scale IQ 129). The observed Verbal > Performance difference of 15 points, was similarly noted in 1981. Intratest scatter had also remained stable. The range of observed scaled scores in both 1981 and today was 7 to 18. Current test results demonstrated verbal intelligence within the very superior range. However, within the performance domain, Gary's abilities only fell within the high average range. Psychomotor retardation was clearly an important factor. Scaled scores on the WAIS-R have a mean of 10, with a standard deviation of 3. Thus, scaled scores of 8 to 12 fall within the average range. The individual subtest scaled scores obtained by Mr. Cone are shown in the attached data sheet. On six of the eleven subtests, performance was >91st percentile compared to same age peers. However, performance on the Digit Span and Digit Symbol subtests was at the 16th and 25th percentile respectively. Mr. Cone's abstract reasoning skills and his docility with arithmetic problems attracted perfect scores. Lowered performance on Digit Span can be a function of reduced attention. However it has also been associated with left hemisphere vulnerability. Difficulties with the Digit Symbol task generally reflects

psychomotor slowing, but problems with focus may also impact performance.

The difficulties noted on certain WAIS-R subtests, was similarly evident in Mr. Cone's performance on the Trail-making tests. Time to complete each part of the test was slow compared to overall intelligence. His performance, although error-free, placed him at the 50th percentile.

Higher cognitive functions appeared intact. Absolutely no difficulties were observed with either the Category Test, or the Wisconsin Card Sorting Test.

Tests of memory functions revealed significant differences between verbal and visual memories. Despite Mr. Cone's superior verbal intellect, his memory for verbal material was below average. In particular, he had considerable difficulty remembering meaningful verbal material, where the content was typically about some sort of social interaction. However, his memory for lists of words with no social meaning was excellent. Problems were evidence with immediate memory, and did not deteriorate further with a 30 minute delay. The already observed difficulty recalling strings of numbers (WAIS-R), was also evident on the WMS-R.

The unusual, but stable, pattern observed in Mr. Cone appears to reflect psychopathology, rather than organicity. This was the general conclusion in 1981, and current test data, both cognitive and personality, appeared to support this.

Current data from personality tests was consistent across all instruments administered. Situational depression was evident on both the BDI and the ISB.

Valid profiles were obtained from both objective tests of personality functioning (MMPI-2 and MCMI-II). The F scale elevation on the MMPI-2 (T=70) indicated the presence of deviant social convictions, along with considerable social alienation (0 scale, T=78). The 1-4 clinical profile is associated with severe somatic complaints, often headaches, along with a degree of rebellion. These individuals typically lack direction, have low energy, poor social skills are plagued by indecision. The concomitant low 9 scale (T=49) further supports the low drive, reduced levels of activity, social withdrawal, and inability to express feelings directly. The MCMI-II data revealed Mr. Cone's avoidant tendencies, and his introversive, edgy and dependent character. Mr. Cone lacks social initiative, and his social interactions will generally be affectless and grim. Mr. Cone has little in the way of spontaneity in his personality profile. He lacks the will to operate in a socially competent fashion, he is typically passive and solitary, indifferent to his social milieu. This social isolation in some part is attributable to his inability to experience pleasure. However, beneath this apathy he harbors feelings of discontent and anger, that are typically displayed in a passive-aggressive fashion. His preference appears to be for a simple, repetitive and dependent lifestyle, where responsibility for his actions can be abdicated.

A valid Rorschach profile was also obtained. This essentially confirmed the above. Specifically, Mr. Cone is emotionally distanced. However, at times of intense emotional stress, Mr. Cone may show evidence of cognitive disarray. He demonstrated significant emotional irritation secondary to strong unmet needs for closeness and

dependency. Mr. Cone clearly has no need to be concerned with appearing conventional. His perceptions are unique, and somewhat over-personalized. However, he is able to appreciate the commonplace when required to do so. Perfectionist traits were evident. Generally, Mr. Cone will only devote his energies to projects [sic] have some probability of success.

DISCUSSION

The similarity between current test data and that obtained a decade ago was interesting. In 1981 it was concluded that data was reflective of the "intrusion of aggressive impulse derivatives". There was no clear evidence to support organic involvement. There was similarly no evidence to support the presence of florid psychosis. However, social history and limited earlier psychological data suggested no premorbid impulse control difficulties. For example, Mr. Cone was described as a perfect child. Thus, any aggressive impulses might be assumed to be the product of some intervening variable. Possible candidates appears to be: drug dependence; head trauma; or a psychiatric disturbance.

At this time active drug dependence is a non-issue. Mr. Cone claims no current use. Little evidence exists to support organic involvement secondary to head injury. However, there is considerable evidence to support the presence of a psychiatric disturbance. The social history is replete with events likely to produce symptoms consistent with a diagnosis of post-traumatic stress disorder (PTSD).

PTSD is an anxiety disorder that occurs in response to events that are typically viewed as being outside the realm of normal human experience. Mr. Cone has experienced several such events. The major traumas in his life have been:

1. At age 8 or 9, witnessing his brother's body being removed from the lake. Gary's problems following this event are well documented historically.

2. His grandmother's death, just after high school graduation. Gary lived with her, and clearly viewed her as a safe haven from his father.

3. Duty in Vietnam, 1968-1969. although not a combat soldier, experiences were beyond the realm of normal experiences for a 20-year-old.

4. Rape and murder of his fiancé in December 1972.

The extensive literature on trauma, and its aftermath has shown that the effects can be both direct and indirect. basically, the effects on Mr. Cone appear to have been indirect. One such indirect effect is avoidance and numbing. In these individuals, there is a reduced capacity to experience emotion, notably in the realms of intimacy, tenderness, grief and the appropriate expression of sexuality. They become emotionally detached, and the ability to experience pleasure is diminished. Mr. Cone fits this cluster of behaviors. Current literature tends to focus on two types of trauma victims, and Mr. Cone has a foot in each camp. The bulk of the literature reflects the effects of trauma on Vietnam veterans. A second body of literature is concerned with the long term effects of childhood trauma. Mr. Cone experienced both, plus the experience of the rape and murder of his fiance.

Several authors (Wilson & Zigelbaum, 1982; Blank, 1985; Eth & Pynoos, 1985; Johnson, 1989) have described how victims of PTSD have altered personalities that *may* lead to antisocial behavior. PTSD victims often operate in a "survivor mode", they come sensation seekers who flirt with danger. All authors have written of the elements necessary to link antisocial/criminal behavior with PTSD. For example it is assumed that:

1. the behavior be unpremeditated
2. the behavior is uncharacteristic
3. there are more than one traumatic events that are re-enacted
4. there is amnesia for the episode
5. the behavior lacks motive
6. the trigger for the behavior represents something reminiscent of the trauma
7. the individual is unaware that the behavior represents re-enactment
8. the victim(s) is random or accidental
9. the individual has symptoms consistent with PTSD.

Mr. Cone meets all of the above, except that the trigger for his behavior is unknown. In addition, Mr. Cone has the hallmarks of delayed response to trauma, that is the psychic numbing, the social alienation, the interpersonal conflict, drug abuse and global problems with intimate relationships. Displaced anger is often associated with individuals who were traumatized as children.

Childhood trauma is associated with aberrant personality development, further exposure to traumatic events would exacerbate any existing problems.

Overall, the data support the following diagnoses:

> An atypical Post-traumatic stress disorder; Dysthymia, early onset; Polysubstance Dependence; Personality Disorder NOS (avoidant, dependent and schizoid).

/s/ Gillian Blair
Gillian Blair, Ph.D.
Clinical Psychologist.

PSYCHOLOGICAL EVALUATION

DATA SHEET

NAME:	Gary Bradford Cone
DATE OF BIRTH:	10/11/48
AGE:	42
HANDEDNESS:	Left

WAIS-R VERBAL TESTS	SCALED SCORE
INFORMATION	16
DIGIT SPAN	7
VOCABULARY	16
ARITHMETIC	17
COMPREHENSION	14
SIMILARITIES	18

PERFORMANCE TESTS	SCALED SCORE
PICTURE COMPLETION	12
PICTURE ARRANGEMENT	13
BLOCK DESIGN	14
OBJECT ASSEMBLY	10
DIGIT SYMBOL	8

VERBAL IQ	131
PERFORMANCE IQ	116
FULL SCALE IQ	129

TRAILMAKING TEST	TIME	ERRORS
PART A	36"	0
PART B	61"	0

WMS-R	INDICES
VERBAL MEMORY	96
VISUAL MEMORY	126
GENERAL MEMORY	102
ATTENTION/CONCENTRATION	105
DELAYED RECALL	114

WCST	
CORRECT	
ERRORS	4
PERSEVERATIVE RESPONSES	3
NON-PERSEVERATIVE ERRORS	4

PERSEVERATIVE ERRORS	0
CATEGORIES	6

BCT

ERRORS	7

MMPI 2

SCALE	T-SCORE
L	52
F	70
R	62
1	68
2	59
3	61
4	72
5	52
6	57
7	49
8	62
9	49
0	51

MCMI-II

PERSONALITY CODE:	Schizoid/Antisocial
CLINICAL SYNDROME:	Drug Dependence